MULTI-TENANT NET LEASE

THIS MULTI-TENANT NET LEASE is made and entered into on July 13, 2021 between WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company ("Landlord") and TD INDUSTRIES, INC., a Texas corporation ("Tenant").

1. **BASIC LEASE PROVISIONS AND CERTAIN DEFINITIONS.** In addition to other terms which are defined elsewhere in this Lease, including the preamble and all Exhibits, the terms defined in this Article 1 shall have the meaning assigned to them whenever each is used throughout this Lease.

1.1 "Landlord Address":

For Rent:
Woodspear Prairie Trail, LLC
c/o Woodspear Properties
810 Los Vallecitos Boulevard, Suite 214
San Marcos, California 92069
Attention: Accounting

For Notices:
Woodspear Prairie Trail, LLC
5050 South Syracuse Street, Suite 900
Denver, Colorado 80237
Attention: John Woodward & Zakary Kessler

with a copy at the same time to:
Woodspear Properties
Attn: Legal Department
810 Los Vallecitos Boulevard, Suite 214
San Marcos, California 92069

1.2 "Tenant Address/Identifying Information":

Identifying Information:
TD INDUSTRIES, INC., a Texas corporation
Federal Tax ID/Social Security Number: 26-0464612
Approved Trade Name: ______________________

Address Before the Commencement Date:
TD Industries, Inc.
88 Inverness Cir. East #106
Englewood, CO 80112

Address After the Commencement Date:
____
8595 Prairie Trail Drive, Unit B-100
Englewood, Colorado 80112
Attention: ______________________

1.3 "Building": A 15,162 square foot multi-tenant building (Building B) that is part of the Building Complex commonly known as Prairie Trail Business Park.

1.4 "Premises": Approximately 5,118 total rentable square feet of space located in the Building, including all improvements to be provided by Landlord under the terms of this Lease, commonly known by the street address/addresses 8595 Prairie Trail Drive, Unit B-100, as such space is expressly outlined on **Exhibit A** and subsequently **Exhibit A-1** (according to the provisions of the Work Letter) attached and incorporated into this Lease.

1.5 "Building Complex": The Premises, the Building, Building A, Building C, the Common Areas, and the land upon which they are located, along with all other buildings and improvements on the land as is depicted on **Exhibit B** attached and incorporated into this Lease.

1.6 "Tenant Parking": Twenty-one (21) unreserved and undesignated vehicle parking spaces on the Building Complex, which represents Tenant's pro-rata share of the Building Complex's available parking of approximately 4.2 spaces per 1,000 square feet of Rentable Area.

1.7 "Primary Term": Sixty-one (61) calendar months. If the Commencement Date is the first day of a calendar month, then the Primary Term begins on that date, and the month containing the Commencement Date is the first month of the Term. If the Commencement Date is not the first day of a calendar month, then the Primary Term begins on the first day of the next calendar month.

1.8 "Term": All of: (i) any partial month between the Commencement Date and the start of the Primary Term in the case of the Commencement Date not being the first day of a calendar month, (ii) the Primary Term, and (iii) if the Lease is extended (pursuant to an option contained in this Lease, if any, or otherwise), all references in this Lease to Term shall automatically be deemed to include any such extended term.

1.9 "Commencement Date": The later of: (A) Substantial Completion of Landlord's Work pursuant to the Work Letter or (B) September 1, 2021.

1.10 "Expiration Date": The last day of the Sixty-first (61st) month of the Primary Term. If the Primary Term is extended (pursuant to an option contained in this Lease, if any, or otherwise), all references in this Lease to Expiration Date shall automatically be deemed to reference the last day of any such extended term.

1.11 "Base Rent": Annual rent payable, monthly, in advance, without notice, set off, deduction, or demand, in equal installments as set forth in the table below, beginning on the first day of the Term and continuing on the first day of each and every succeeding month of the Term:

Month In Primary Term	Annual $ Rental Rate Per Square Foot	Monthly Payment Amount of Base Rent	Base Rent
1	$0.00	$0.00	$0.00
2-13	$11.00	$4,691.50	$56,298.00
14-25	$11.33	$4,832.25	$57,987.00
26-37	$11.67	$4,977.26	$59,727.12
38-49	$12.02	$5,126.53	$61,518.36
50-61	$12.38	$5,280.07	$63,360.84

Notwithstanding anything in this Lease to the contrary, if Tenant is or becomes in Default, any amount of abated Base Rent described in this Lease becomes immediately due and payable from Tenant to Landlord. Tenant shall pay to Landlord such abated Base Rent then owing at the same rate as the Base Rent for months 2-13 for the Premises.

1.12 "Rentable Area": Approximately 83,302 square feet, which is all rentable space available for lease in the Building Complex. Unless otherwise provided in this Lease, any square footage set forth in this Lease or that may have been used in calculating the Rent and/or Tenant's Share is an approximation which Landlord and Tenant agree is reasonable and deemed to control for purposes of this Lease. The Base Rent and any Additional Rent based upon the Rentable Area are not subject to revision whether or not the actual square footage varies from the Rentable Area. Notwithstanding the foregoing, if there is: (i) alteration to the Premises or the Building or Building Complex after the Commencement Date; or (ii) any change in the designated Rentable Area of the Building Complex, then Landlord shall have the exclusive discretion to recalculate Tenant's Share by substituting the revised approximate Rentable Area of the Premises and/or the Building Complex in the calculation described above. Any change in the approximate Rentable Area of the Premises or recalculated by Landlord shall be effective for purposes of calculating Tenant's Share as of the first day of the next calendar month after such change.

1.13 "Tenant's Share": 6.1439% (Calculated by dividing the square footage of the Premises by the Rentable Area or 5,118 divided by 83,302), subject to the provisions of Section 1.12.

1.14 "Security Deposit": An amount equal to $5,280.07, payable via check or wire transfer of immediately available U.S. funds, and it is not last month's or prepaid rent.

1.15 "Permitted Use": General office, warehouse, and customary operation of a plumbing and mechanical repair and supply and contractor company, and for no other purpose.

1.16 "Rent": The Base Rent and Additional Rent referenced collectively.

1.17 "Additional Rent": Any amounts which this Lease requires Tenant to pay to Landlord in addition to Base Rent, including, without limitation, Tenant's Share of Common Area Operating Expenses and all other charges, interest, fees, Inducement Provisions or sums payable to Landlord by Tenant pursuant to this Lease.

1.18 [Intentionally Omitted.]

1.19 "Delivery Date": [Intentionally Omitted.]

1.20 Other Definitions:

(a) "Allowance" has the meaning set forth in **Exhibit E**.

(b) "Alterations" has the meaning set forth in Section 8.3.

(c) "Applicable Laws" means applicable zoning ordinances and regulations; municipal, county, state, and federal laws, ordinances, and regulations; any covenants or restrictions of record; and the Americans with Disabilities Act.

(d) "Applicable Requirements" means all laws, rules, regulations, ordinances, directives, covenants, easements and restrictions of record, permits, the requirements of any applicable fire insurance underwriter or rating bureau, and the recommendations of Landlord's engineers and/or consultants, relating in any manner to the Premises, including but not limited to matters pertaining to: (i) industrial hygiene, (ii) human health, and (iii) human safety.

(e) "Assign" and "Assignment" have the meanings set forth in Section 13.1.

(f) "A Building" means a 21,432 square foot multi-tenant building that is part of the Building Complex commonly known as Prairie Trail Business Park and is adjacent to the Building.

(g) "C Building" means a 42,384 square foot multi-tenant building that is part of the Building Complex commonly known as Prairie Trail Business Park and is adjacent to the Building.

(h) "Common Areas" means all areas and facilities outside the Premises and within the exterior boundary line of the Building Complex and interior utility raceways within the Premises that are provided and designated by the Landlord from time to time for the general non-exclusive use of Landlord, Tenant and other tenants of the Building Complex and their respective employees, suppliers, shippers, customers, contractors and invitees, including parking areas, utility rooms, loading and unloading areas, trash areas, roadways, sidewalks, walkways, parkways, driveways and landscaped areas.

(i) "Common Area Operating Expenses" has the meaning set forth in Section 4.2(a).

(j) "Default" has the meaning set forth in Section 14.1.

(k) "Environmental Laws" means any laws regarding the environment, human health or safety, including but not limited to, the federal Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended (CERCLA); the federal Hazardous Materials Transportation Act, as amended; the federal Resource Conservation and Recovery Act, as amended (RCRA); the federal Toxic Substances Control Act (TSCA); and any laws relating to or addressing those substances defined as "hazardous substances", "materials", or "wastes" under the law of the state, county, and municipality in which the Premises are located.

(l) "Event of Default" has the meaning set forth in Section 14.1.

(m) [Intentionally Omitted.]

(n) [Intentionally Omitted.]

(o) "Hazardous Substances" has the meaning set forth in Section 7.2.

(p) "Landlord's Broker" has the meaning set forth in Article 16.

(q) "Landlord's Notice" has the meaning set forth in Section 13.1(d).

(r) "Landlord's Work" has the meaning set forth in **Exhibit E**.

(s) "Lease" means this MULTI-TENANT NET LEASE and all Exhibits, Schedules, and Addendums attached to it and incorporated into it by this reference as each may be amended from time to time.

(t) "Lender" means the holders of any mortgage, deed of trust or ground lease on the Premises.

(u) "Net Worth of Tenant" means the calculated net worth of Tenant (excluding any Guarantors, if any) established under Generally Accepted Accounting Principles consistently applied.

(v) [Intentionally Omitted.]

(w) "Permitted Size Vehicles" has the meaning set forth in Section 2.5.

(x) "Plans and Specifications" has the meaning set forth in **Exhibit E**.

(y) "Prevailing Party" has the meaning set forth in Article 31.

(z) "Real Property Taxes" has the meaning set forth in Section 11.2.

(aa) "Reportable Use" means: (i) the generation, possession, storage, use, transportation, or disposal of any Hazardous Substances that requires a permit from, or with respect to which a report, notice, registration or business plan is required to be filed with, any governmental authority; (ii) the presence in, on or about the Premises or Building Complex of any Hazardous Substances with respect to which any Applicable Laws or Environmental Laws require that a notice be given to persons entering or occupying the Premises or neighboring properties; and (iii) the disposal, spill, storage, use, manufacture, transportation, handling, or other interaction with any Hazardous Substances in violation of any Environmental Law.

(bb) "Security Device" has the meaning set forth in Section 30.1.

(cc) "Substantial Completion" means (i) Tenant's Work has been constructed in accordance with the terms of this Lease, (ii) a final, unconditional Certificate of Occupancy permitting the permanent occupancy of the entire Premises has been issued, and (iii) the unfinished items will not, in the reasonable judgment of the Tenant, prevent the Tenant from using or occupying any material portion of the Premises for the use permitted by the Lease.

(dd) "Substantially Complete and Substantially Completed" means Substantial Completion.

(ee) "Tenancy Statement" has the meaning set forth in Section 17.1.

(ff) "Tenant Delay" has the meaning set forth in **Exhibit E**.

(gg) "Tenant-Owned Alterations and/or Utility Installations" has the meaning set forth in Section 8.3.

(hh) "Tenant's Broker" has the meaning set forth in Article 16.

(ii) "Tenant's Notice" has the meaning set forth in Section 13.1(a).

(jj) [Intentionally Omitted.]

(kk) "Tenant's Work" has the meaning set forth in **Exhibit E**.

(ll) "Trade Fixtures" has the meaning set forth in Section 8.3.

(mm) "Utility Installations" has the meaning set forth in Section 8.3.

2. PREMISES, PARKING AND COMMON AREAS.

2.1 Grant. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises, beginning on the Commencement Date, for the Term, ending on the Expiration Date, at the Rent, and upon all of the terms, covenants and conditions set forth in this Lease. In addition to Tenant's rights to use and occupy the Premises as specified in this Lease, Tenant shall have non-exclusive rights to the Common Areas as specified in Section 2.4, but shall not have any rights to the roof, exterior walls or utility raceways of the Building or to any other buildings or improvements on the Building Complex.

2.2 Landlord Delivery. Landlord shall deliver the Premises to Tenant clean and free of debris pursuant to the terms of the Work Letter. Landlord shall deliver the Premises with (A) the base Building electrical systems, mechanical systems, plumbing systems, roofing systems, structural systems, window systems, and exterior non-loading doors and locks in good working order and (B) Premises fire and life safety systems and restrooms in good working order, except for those modified or constructed by Tenant pursuant to the Work Letter. Landlord represents and warrants that the Common Areas and exterior, non-loading entrance(s) to the Premises will be in material compliance with all Applicable Laws on the Commencement Date. If Tenant does not give Landlord written notice of a non-compliance with the warranties set forth in this Section within thirty (30) days after the Commencement Date, correction of any non-compliance shall be the obligation of Tenant, at Tenant's sole cost and expense.

2.3 Acceptance and Condition of Premises. Tenant acknowledges, represents, and warrants:

(a) that Tenant has been advised to satisfy itself with respect to the condition of the Premises, including, but not limited to, the electrical and fire sprinkler systems, security, compliance with Applicable Laws and Environmental Laws, and the present and future suitability of the Premises for Tenant's intended use;

(b) that Tenant has made such investigation as it deems necessary with reference to such matters, is satisfied with the investigation, and assumes all responsibility as the same relate to Tenant's occupancy of the Premises and/or the terms of this Lease; and

(c) that neither Landlord nor any of Landlord's agents has made any oral or written representations or warranties with respect to the matters in this Section 2.3 other than as expressly set forth in Section 2.2 or elsewhere in this Lease.

If Landlord has agreed to complete Landlord's Work, such work shall be completed in accordance with the Work Letter attached and incorporated into this Lease as **Exhibit E**. Notwithstanding the preceding sentence and except as set forth expressly in the Work Letter, Landlord shall have no obligation for completion of any remodeling of the Premises, and, other than as expressly set forth in Section 2.2 or elsewhere in this Lease, Tenant shall accept the Premises in its "AS-IS" condition, with all faults and expressly disclaiming all warranties of fitness for any particular purpose. Since compliance with the Americans with Disabilities Act is dependent upon Tenant's specific use of the Premises, Landlord makes no representation or warranty as to whether or not the Premises comply with the Americans with Disabilities Act or any similar state or local legislation or regulations, except for the representation and warranty set forth in Section 2.2 pertaining to the condition of the exterior, non-loading entrance(s) to the Premises. In the event that Tenant's use of the Premises, including Tenant's Work contained in the Work Letter, requires modifications or additions to the Building Complex in order to be in compliance with the Americans with Disabilities Act or any similar state or local legislation or regulations, Tenant shall make any such required modifications or additions at Tenant's sole cost and expense. Notwithstanding the foregoing, to Landlord's current actual knowledge without duty of investigation, the existing condition of the Premises on the Delivery Date complies with the Americans with Disabilities Act.

2.4 Common Areas. Landlord grants to Tenant, for the benefit of Tenant and its employees, suppliers, shippers, contractors, customers and invitees during the Term the non-exclusive right to use, in common with others entitled to such use, the Common Areas as they exist from time to time, subject to any rights, powers, and privileges reserved by Landlord under the terms of this Lease or under the terms of any rules and regulations or restrictions governing the use of the Building Complex. Under no circumstances shall this right to use the Common Areas be deemed to include the right to store any property, temporarily or permanently, in the Common Areas, other than as expressly set forth in Section 2.5 or elsewhere in this Lease. Landlord may permit storage in the Common Areas at Landlord's sole and absolute discretion, provided that Tenant must secure Landlord's prior written consent to such storage, which consent maybe revoked by Landlord at any time. In the event that any unauthorized storage occurs, then Landlord shall have the right, without notice, in addition to such other rights and remedies that it may have, to remove the property and charge the cost of removal to Tenant, which cost shall be immediately payable upon demand by Landlord. Landlord or such other person(s) as Landlord may appoint shall have the exclusive control and management of the Common Areas and shall have the right, from time to time, to establish, modify, amend and enforce reasonable rules and regulations with respect to the Common Areas. Landlord may, in Landlord's sole discretion, from time to time: (i) make changes to the Common Areas, including, without limitation, changes in the location, size, shape and number of driveways, entrances, parking spaces, parking areas, loading and unloading areas, ingress, egress, direction of traffic, landscaped areas, walkways and utility raceways; (ii) close temporarily any of the Common Areas for maintenance purposes so long as reasonable access to the Premises remains available; (iii) designate other land outside the boundaries of the Building Complex to be a part of the Common Areas; (iv) to add additional building and improvements to the Common Areas; (v) to use the Common Areas while engaged in making additional improvements, repairs or alterations to all or the Building Complex, or any portion thereof; and (vi) to do and perform such other acts and make such other changes in, to or with respect to the Common Areas and Building Complex as Landlord may, in the exercise of sound business judgment deem to be appropriate.

2.5 Parking. Tenant shall be entitled to use the Tenant Parking on those portions of the Common Areas designated from time to time by Landlord for parking. Tenant shall not use more parking spaces than the Tenant Parking. The Tenant Parking shall be used for parking by vehicles no larger than full-size passenger automobiles or pick-up trucks ("Permitted Size Vehicles"). Vehicles other than Permitted Size Vehicles shall be parked and loaded or unloaded as directed by Landlord in its rules and regulations for the Building or Building Complex. Tenant shall not permit or allow any vehicles that belong to or are controlled by Tenant or Tenant's employees, agents, suppliers, shippers, customers, contractors or invitees to be loaded, unloaded, or parked in areas other than those designated by Landlord for such activities. If Tenant permits or allows use of the prohibited areas, then Landlord shall have the right, without notice, in addition to such other rights and remedies that it may have, to remove or tow away the vehicle involved and charge the cost of the removal or tow to Tenant, which cost shall be immediately payable upon demand by Landlord.

2.6 Americans with Disabilities Act Compliance by Tenant. Tenant shall not cause or permit any violation of the Americans with Disabilities Act to occur on, or about the Premises by Tenant, its agents, employees, contractors or invitees. Tenant shall indemnity, defend and hold Landlord harmless from any and all claims, judgments, damages, penalties, fines, costs, liabilities, or losses (including, without limitation, sums paid in settlement of claims, reasonable attorneys' fees, consultation fees and expert fees) that arise during or after the Term as a result of such violation. This indemnification of Landlord by Tenant includes, without limitation, costs incurred in connection with any investigation of site conditions or any remedial work required by any federal, state, or local governmental agency or political subdivision because of any Americans with Disabilities Act violation present on or about the Premises caused by Tenant, its agents, employees, contractors or invitees. Tenant shall be permitted to make such alterations to the Premises as may be necessary to comply with the Americans with Disabilities Act, at Tenant's sole expense, except as otherwise provided in this Lease, and upon the prior written consent of Landlord. Without limiting the foregoing, if the presence of any Americans with Disabilities Act violation on the Premises caused or permitted by Tenant results in remedial work on the Premises, Tenant shall promptly take all actions at its sole expense as are required by any authority to comply with the Americans with Disabilities Act; provided that Landlord's consent to such actions shall first be obtained, which shall not be unreasonably withheld, conditioned, or delayed.

3. TERM

3.1 Term. The Primary Term, Term, Commencement Date, and Expiration Date of this Lease are defined in Sections 1.7, 1.8, 1.9, and 1.10, respectively. Tenant shall lease and occupy the Premises for the Term.

3.2 Delivery Date. If a Delivery Date is specified in Section 1.19, and if Tenant totally or partially occupies the Premises after the Delivery Date but prior to the Commencement Date, the obligation to pay Base Rent shall be abated for the period of such early occupancy. All other terms of this Lease, however, including but not limited to, the obligations to pay Tenant's Share of Common Area Operating Expenses and to carry the insurance required in the Lease, shall be in effect during such period beginning on the Delivery Date.

3.3 Delay in Possession. If for any reason Landlord cannot deliver possession of the Premises to Tenant by the Delivery Date, if one is specified in Section 1.19, or if no Delivery Date is specified, by the Commencement Date, Landlord shall not be subject to any liability for such failure, nor shall such failure affect the validity of this Lease or Tenant's obligations under it or extend the Primary Term of this Lease; but in such case, Tenant shall not, except as otherwise provided in this Lease, be obligated to pay Base Rent or Tenant's Share of Common Area Operating Expenses or perform any other obligation of Tenant under the terms of this Lease until Landlord delivers possession of the Premises to Tenant. Following such delay in possession, the Commencement Date shall be deemed to be the date that the Premises is delivered by Landlord to Tenant. If, in accordance with the foregoing provision, the Commencement Date would occur on other than the first day of a calendar month, the Commencement Date shall be deemed to be the first day of the next calendar month, and the Primary Term shall be measured from such date; provided, however, during any period of delayed commencement after Landlord's delivery of possession of the Premises, all terms and provisions set forth in this Lease including, but not limited to Tenant's obligation to pay Base Rent and Additional Rent and all other rent and charges under the Lease, shall commence at such earlier date. The delay of the Commencement Date (and relief from rental payments during such period of delay) shall be in full satisfaction of any claims Tenant might otherwise have as a result of such delay. In order to place in writing the exact Commencement Date and Expiration Date of the Lease, the parties shall execute a Supplemental Agreement and Commencement Certificate substantially in the form attached to this Lease as **Exhibit F**, which will become a part of this Lease and will set forth such dates as determined under the provisions of this Section 3.3.

3.4 [Intentionally Omitted.]

3.5 Prepaid Rent. Upon execution of this Lease by Tenant, Tenant shall pay to Landlord an amount equal to $7,813.48, representing Tenant's Share of Common Area Operating Expenses for Month(s) 1 of the Primary Term and the monthly payment amount of Base Rent for Month(s) 2 of the Primary Term (the "Prepaid Rent").

4. RENT

4.1 Base Rent. Tenant shall pay to Landlord Base Rent, Additional Rent and other rent or charges provided for in this Lease, as each may be adjusted from time to time, in lawful money of the United States on or before the day on which it is due under the terms of this Lease. Tenant shall pay Base Rent commencing on the Commencement Date. Base Rent, Additional Rent, and all other rent and charges provided for in this Lease for the period during the Term, which is for less than one full month shall be prorated based upon the actual number of days of the calendar month involved at the same rate as the unabated Base Rent applicable for the month in the Term nearest to such date. Tenant shall pay Rent and all other charges to Landlord at Landlord's Address For Rent stated in Section 1.1 or to such other persons or at such other addresses as Landlord may, from time to time, designate in writing to Tenant.

4.2 Common Area Operating Expenses. Beginning on the Delivery Date, if one is specified in Section 1.19, or if no Delivery Date is specified, on the Commencement Date and throughout the Term (including any period of Base Rent abatement), Tenant shall pay to Landlord, in addition to the Base Rent (even during such periods where the Base Rent is abated), as Additional Rent, Tenant's Share (as specified in Section 1.13) of all Common Area Operating Expenses, as defined in this Section 4.2, during the Term of this Lease, in accordance with the following provisions:

(a) "Common Area Operating Expenses" means all ordinary and customary costs incurred by Landlord in the ownership and operation of the Building Complex, except as provided in subsection (b) below, including, but not limited to, the following:

(i) The operation, repair and maintenance, in neat, clean, good order and condition of the Building Complex and Common Areas, including parking areas, utility rooms, loading and unloading areas, trash areas/enclosures, roadways, sidewalks, walkways, parkways, driveways, landscaped areas, striping, bumpers, irrigation systems, Common Area and Building Complex lighting facilities, fences and gates, elevators, roofs, retaining walls, and exterior walls, including paint; exterior signs, awnings, any tenant directories, fire detection/monitoring, sprinkler systems, exterior window washing, and trash removal. With respect to parking areas, roadways, sidewalks, walkways, parkways, driveways, repairs and maintenance includes all of the following milling, overlay, concrete repairs (curb, gutter, drain pans, and sidewalks), and patch work.

(ii) Wages and benefits of employees who devote substantially all of his or her employed time to the Building Complex or such prorated wages and benefits for employees who devote employed time to the Building Complex to reflect time spent on operating and managing the Building Complex vis-à-vis time spent on matters unrelated to operating and managing the Building Complex.

(iii) All professional or consulting fees incurred in connection with the operation, management and maintenance of the Building Complex.

(iv) The cost of water, sewer, gas, electricity, internet, fiber, and telephone to service either the Building Complex and/or the Premises, to the extent not separately metered or paid directly by Tenant or any other tenant of the Building Complex.

(v) Snow, ice and debris removal service, security services, and the costs of any environmental inspections.

(vi) Cost of capital improvements, structural repairs and replacements in or to the Building Complex, including but not limited to, the replacement of the Building's roof and the replacement of any HVAC units servicing the Premises that need repair and have reached the end of their useful life, which shall be amortized at a market rate of return over the useful life of such item as determined by Landlord's accountants.

(vii) Real Property Taxes to be paid by Landlord for the Building Complex and the Common Areas under Article 11.

(viii) The cost of the premiums for the insurance policies maintained by Landlord under Article 9.

(ix) Any deductible portion of an insured loss concerning the Building Complex or the Common Areas.

(x) Any other services to be provided by Landlord that are stated elsewhere in this Lease to be a Common Area Operating Expense.

(xi) Any inspections of, testing of, or costs of compliance with the Applicable Requirements and Environmental Laws for the Building Complex.

(b) Any Common Area Operating Expenses and Real Property Taxes that are specifically attributable to the Building or to such other building in the Building Complex or to the operation, repair and maintenance thereof shall be allocated entirely to the Building or such other building (prorata amongst the tenants of such building based on each tenant's proportionate share of the total rentable area of that building to which the expense is specifically allocated). However, any Common Area Operating Expenses and Real Property Taxes that are not specifically attributable to the Building or to any other building or to the operation, repair and maintenance thereof, shall be equitably allocated by Landlord to all buildings in the Building Complex.

(c) The inclusion of the improvements, facilities, and services set forth in Section 4.2(a) shall not be deemed to impose an obligation upon Landlord to either have said improvements or facilities or to provide those services unless Landlord has agreed elsewhere in this Lease to provide the same or some of them.

(d) Tenant's Share of Common Area Operating Expenses shall be payable by Tenant to Landlord within thirty (30) days after a reasonably detailed statement of actual expenses is presented to Tenant by Landlord. At Landlord's option, however, an amount may be estimated by Landlord from time to time of Tenant's Share of annual Common Area Operating Expenses and one twelfth (1/12th) of the same shall be payable monthly, as Landlord shall designate, during each calendar year, on the same day and terms as the Base Rent is due and payable under Section 4.1. Common Area Operating Expenses are estimated to be approximately $7.32 per square foot for the 2021 calendar year. If, during any particular calendar year, there is a change in the information on which Landlord based the estimate upon which Tenant is then making its estimated Common Area Operating Expenses payments so that such estimate furnished to Tenant is no longer accurate, Landlord may revise such estimate from time to time, but no more than once per year, by notifying Tenant, and there shall be such adjustments made in the monthly amount of Tenant's Share of Common Area Operating Expenses on the first day of the month following the delivery of such statement to Tenant. Not later than one hundred fifty (150) days after the expiration of each calendar year during the Term, Landlord shall deliver to Tenant a reasonably detailed statement showing Tenant's Share of the actual Common Area Operating Expenses incurred during the preceding year. If Tenant's payments under this Section 4.2(d) during said preceding calendar year exceed Tenant's Share of actual Common Area Operating Expenses as indicated on said statement, Landlord shall either credit Tenant the amount of such overpayment against Tenant's Share of Common Area Operating Expenses next becoming due or, if this Lease has expired or terminated, apply to any amounts then owing from Tenant to Landlord under this Lease and refund such excess thereafter to Tenant within sixty (60) days. If Tenant's payments under this Section 4.2(d) during said preceding year were less than Tenant's Share of actual Common Area Operating Expenses as indicated on said statement, Tenant shall pay to Landlord the amount of the deficiency within ten (10) days after delivery by Landlord to Tenant of said statement. In addition, if Landlord obtains a cash payment for a tax refund for any

Real Property Taxes paid by Tenant in any prior calendar year, then Landlord shall credit or reimburse Tenant for Tenant's share of such refund no later than one hundred twenty (120) days after receipt of such funds by Landlord from the taxing authority. Landlord's failure to deliver a statement detailing Tenant's Share of Common Area Operating Expenses within one hundred fifty (150) days shall not relieve Tenant of the obligation to pay sums otherwise due. Tenant's obligation to pay Tenant's Share of Common Area Operating Expenses and Landlord's obligation to refund Tenant's Share of Common Area Operating Expenses upon overpayment by Tenant or Tenant's share of any refund for any Real Property Taxes paid by Tenant shall survive the expiration or termination of the Lease.

5. **SECURITY DEPOSIT.** Tenant shall deposit with Landlord upon Tenant's execution of this Lease the Security Deposit set forth in Section 1.14 as security for Tenant's faithful performance of Tenant's obligations under this Lease. If Tenant fails to pay Rent or other rent or charges due under this Lease, or there is an Event of Default under this Lease, Landlord may use, apply or retain all or any portion of the Security Deposit for the payment of any amount due Landlord or to reimburse or compensate Landlord for any liability, cost, expense, loss or damage (including reasonable attorneys' fees) which Landlord may suffer or incur by reason of Tenant's Default. If Landlord uses or applies all or any portion of said Security Deposit, Tenant shall deposit monies with Landlord sufficient to restore said Security Deposit to the full amount required by this Lease, no later than ten (10) days after receiving written request by Landlord to do so. Landlord shall not be required to keep all or any part of the Security Deposit separate from its general accounts. Landlord shall, within sixty (60) days after the expiration of the Term and after Tenant has vacated the Premises, return to Tenant (or, at Landlord's option, to the last assignee, if any, of Tenant's interest in this Lease), that portion of the Security Deposit, if any, that Landlord has not used, retained, or applied to any amount due from Tenant to Landlord under this Lease. No part of the Security Deposit shall be considered to be held in trust, to bear interest or other increment for its use, or to be prepayment for any monies to be paid by Tenant under this Lease. At Landlord's election, Landlord may elect to have the Security Deposit held by Landlord's manager in a separate security deposit, trust, trustee or escrow account established and maintained by such manager with respect to certain security deposits of Tenants within the Building Complex. Unless Tenant is so notified: (i) Landlord will hold the Security Deposit and be responsible for its return; and (ii) Tenant may request return of the Security Deposit by giving Landlord written notice in accordance with the provisions of the Lease, and Landlord's manager, if any, agrees that in the event of a dispute over the ownership of the Security Deposit, the manager will not wrongfully withhold Landlord's true name and current mailing address from Tenant. Landlord may (X) deliver the funds deposited by Tenant as the Security Deposit to the purchaser of Landlord's interest in the Premises in the event such interest is sold, and thereupon, Landlord shall be discharged from any further liability with respect to such deposit or (Y) credit an amount equal to the Security Deposit to the purchaser of Landlord's interest in the Building Complex and assign Landlord's interest in the funds deposited by Tenant as the Security Deposit to the purchaser of Landlord's interest in the Premises in the event such interest is sold, and thereupon, Landlord shall be discharged from any further liability with respect to such deposit. If the claims of Landlord against Tenant for any amount due under this Lease exceed the Security Deposit, Tenant shall remain liable for the balance of such claims.

6. **USE.**

6.1 Permitted Use.

(a) Tenant shall use and occupy the Premises only for the Permitted Use set forth in Section 1.15 and for no other purpose. Tenant shall not use or permit the use of the Premises in a manner that is unlawful, violates any use prohibitions in the financing for the Building Complex that are related to "controlled substances" pursuant to Federal law, creates waste or a nuisance, or that disturbs owners and/or occupants of, or causes damage to the Premises or neighboring premises or properties.

(b) Landlord hereby agrees to not unreasonably withhold or delay its consent to any written request by Tenant, Tenant's assignees or subtenants, and by prospective assignees and subtenants of Tenant, for a modification of said Permitted Use so long as the same will not impair the structural integrity of the improvements on the Premises or in the Building or any systems therein, does not conflict with uses by other tenants of the Building Complex, is not significantly more burdensome to the Premises or the Building and the improvements thereon, and is otherwise permissible pursuant to this Section 6.1. If Landlord elects to withhold such consent, Landlord shall within five (5) business days after such request give a written notification of same, which notice shall include an explanation of Landlord's reasonable objections to the change in use.

(c) In the event that Tenant (W) fails to occupy the Premises within ninety (90) days after the Commencement Date, (Y) after occupying the Premises, vacates the Premises for a period of fourteen (14) consecutive days without reoccupying the same, or (Z) abandons the Premises, then Landlord has the right to terminate this Lease, or in lieu thereof Landlord shall be entitled to one hundred seventy-five percent (175%) the amount of Base Rent for such period of Tenant's violation of (W), (X), (Y), or (Z) above, which Tenant shall pay Landlord as reasonable estimated compensation for Tenant violating the covenants contained in this subsection in addition to any other remedies afforded to it by law.

7. ENVIRONMENTAL MATTERS & APPLICABLE REQUIREMENTS.

7.1 Tenant Covenants.

(a) Tenant shall not cause any Hazardous Substances to be used, generated, stored or disposed of on, under or about, or transported to or from, the Premises unless the same is specifically approved in advance by Landlord in writing other than (X) small quantities of retail, household, and office chemicals customarily sold over-the-counter to the public and which are related to Tenant's Permitted Use and are stored, used, and transported in compliance with the Environmental Laws and (Y) commercially reasonable quantities of petroleum products customarily required to conduct Tenant's Permitted Use and are stored, used, transported, and disposed of in compliance with the Environmental Laws and Applicable Requirements. Following Landlord approval, if any, pursuant to the preceding sentence, Tenant shall not permit a Reportable Use of any Hazardous Substance to occur on, under or about the Premises or Building Complex.

(b) Tenant shall comply with all obligations imposed by Environmental Laws, and all other restrictions and regulations upon the use, generation, storage, or disposal of any Hazardous Substances at, to, or from the Premises.

(c) Tenant shall not install any underground or aboveground storage tanks on the Premises without Landlord's prior written permission, which may be withheld or conditioned in Landlord's sole subjective discretion.

(d) Tenant shall complete fully, truthfully and promptly any questionnaires sent by Landlord with respect to Tenant's use of the Premises and its use, generation, storage and disposal of any Hazardous Substances at, to, or from the Premises.

(e) Tenant shall cease immediately upon notice from Landlord any activity which violates or creates a risk of violation of any Environmental Laws.

(f) After notice to and approval by Landlord, Tenant shall promptly remove, clean-up, dispose of or otherwise remediate, in accordance with Environmental Laws and good commercial practice, any Hazardous Substances on, under or about the Property resulting from Tenant's activities in the Premises and on the Building Complex.

7.2 Definition of Hazardous Substances. The term "Hazardous Substances" shall include but not be limited to hazardous substances or wastes, toxic substances or wastes, pollutants, or contaminants or any substances defined as "hazardous substances", "toxic substances", "toxic wastes", "hazardous materials", or "hazardous wastes" in the Environmental Laws; materials containing asbestos or urea formaldehyde; gasoline and other petroleum products; flammable explosives; radon and other natural gases; PCBs; perchloroethylene and other dry cleaning compounds; and radioactive materials.

7.3 Duty to Inform Landlord. Tenant shall deliver promptly to Landlord true and complete copies of all notices received by Tenant from any governmental authority with respect to the use, generation, storage or disposal by Tenant of any Hazardous Substances at, to or from the Premises and shall immediately notify Landlord both by telephone and in writing of any violation of an Environmental Law, any Reportable Use of any Hazardous Substances, or of any condition that poses a hazard to the Building Complex, the public, or the environment.

7.4 Indemnification. Tenant shall indemnify, protect, defend with counsel acceptable to Landlord and hold Landlord, its managers, members, officers, directors, agents, employees, and Lender(s), if any, and the Premises, harmless from and against any and all damages, liabilities, judgments, costs, claims, liens, expenses, penalties, losses (including, without limitation, any decrease in the value of the Building Complex, loss or restriction of any area of the Building Complex, loss of permits, and adverse impact of the marketability of the Property or Premises) and attorneys' and consultants' fees arising out of or involving any Hazardous Substances brought onto the Premises by or for Tenant or by anyone under Tenant's control in violation of the covenants and obligations of Tenant set forth in this Article. Tenant's indemnification obligations under this Section shall include, but not be limited to, the effects of any contamination or injury to any person, property or the environment created or suffered by Tenant, and the cost of investigation (including consultants' and attorneys' fees and testing), removal, remediation, restoration and/or abatement thereof, or of any contamination therein involved. The obligations and covenants of Tenant set forth in this Article shall survive the expiration or earlier termination of this Lease.

7.5 Tenant's Compliance with Applicable Requirements. Tenant shall at Tenant's sole cost and expense, fully, diligently and in a timely manner, comply with all Applicable Requirements, now in effect or which may hereafter come into effect. Tenant shall, within five (5) days after receipt of Landlord's written request, provide Landlord with copies of all documents and information, including but not limited to permits, registrations, manifests, applications, reports and certificates, evidencing Tenant's compliance with any Applicable Requirements specified by Landlord, and shall immediately upon receipt, notify Landlord in writing (with copies of any documents involved) of any threatened or actual claim, notice, citation, warning, complaint or report pertaining to or involving failure by Tenant or the Premises to comply with any Applicable Requirements.

7.6 Inspection. Landlord, Landlord's agents, employees, contractors and designated representatives, and Lender(s) shall have the right to enter the Premises at any time in the case of an emergency, and otherwise at reasonable times, for the purpose of inspecting the condition of the Premises and for verifying compliance by Tenant with this Lease and all Applicable Requirements, Environmental Laws, and the covenants and obligations of Tenant set forth in this Article, and Landlord shall be entitled to employ experts and/or consultants in connection such inspections. The costs and expenses of any such inspections shall be paid by the party requesting same, unless an Event of Default has occurred and is continuing, Landlord has reasonable belief that Tenant has violated any Applicable Requirements, Environmental Laws, or failed to adhere to the covenants and obligations set forth in this Article, or unless the inspection is requested or ordered by a governmental authority as the result of any such existing or imminent violation or contamination. In such case, Tenant shall pay Landlord as Additional Rent or reimburse Landlord's Lender(s), as the case may be, for the costs and expenses of such inspections.

8. NET LEASE, MAINTENANCE, REPAIRS, UTILITY INSTALLATIONS, TRADE FIXTURES AND ALTERATIONS.

8.1 By Tenant.

(a) Subject to the provisions of Sections 2.2, 8.2, 10, and 15, Tenant shall, at Tenant's sole cost and expense and at all times, keep the Premises, the systems serving it, and every part thereof in good order, condition and repair (whether or not such portion of the Premises requiring repair, or the means of repairing the same, are reasonably or readily accessible to Tenant, and whether or not the need for such repairs occurs as a result of Tenant's use, any prior use, the elements or the age of such portion of the Premises), including, without limiting the generality of the foregoing, all equipment or facilities specifically serving the Premises; whether or not the equipment or facilities are located within the Premises, such as plumbing, heating, air conditioning and ventilating system, electrical system, lighting facilities, boilers, fired or unfired pressure vessels, fire hose connections if within the Premises, fixtures, interior walls, interior surfaces of exterior walls, ceilings, floors, windows, and doors serving the Premises, including overhead doors, dock bumpers, dock pads, dock levelers, etc., plate glass, signage, and skylights. Tenant, in keeping the Premises in good order, condition and repair, shall exercise and perform good maintenance practices. Tenant's obligations shall include restorations, replacements or renewals when necessary to keep the Premises and all improvements thereon or a part thereof in good order, condition and state of repair.

(b) Tenant shall, at Tenant's sole cost and expense, procure and maintain a contract, with copies to Landlord, customary form and substance for and with a contractor specializing and experienced in the inspection, maintenance and service of the heating, air conditioning and ventilation system for the Premises, with preventative maintenance services to occur not less than one time per calendar quarter throughout the Term. However, Landlord reserves the right, upon notice to Tenant, to procure and maintain the preventative maintenance contract for the heating, air conditioning and ventilating systems, and if Landlord so elects, Tenant shall reimburse Landlord, upon demand, for the cost thereof. Tenant shall, at its sole expense, pay for or reimburse Landlord upon demand the cost of any repairs made pursuant to such preventative maintenance contract (or at the recommendation of said service provider) as if incurred directly by Tenant pursuant to subsection 8.1(a) above.

(c) If Tenant fails to perform Tenant's obligations under this Section 8.1 and such failure continues for ten (10) days after delivery of written notice to Tenant (except in the case of an emergency, in which case no notice shall be required), Landlord may enter upon the Premises, perform such obligations on Tenant's behalf, and put the Premises in good order, condition and repair. Tenant shall pay Landlord's costs for the same upon demand.

8.2 By Landlord. This Lease is a net lease, and Landlord is not obligated in any way to make any expenditures of any kind related to the Premises, except for the obligations that are expressly set forth in Sections 2.2, 4.2, this Section, Article 10 and Article 15. Any expenses incurred by Landlord pursuant to this Section are subject to reimbursement as Common Area Operating Expenses according to the terms and conditions of Section 4.2, and Landlord is not obligated to repair or make capital replacements as a result of damage caused by any negligent or intentional act or omission of Tenant, its agents, employees, suppliers or invitees, which Tenant shall repair at its expense. In accordance with the foregoing sentences, Landlord, subject to reimbursement pursuant to Section 4.2, shall keep in good order, condition and repair the Common Areas, foundations, exterior walls, structural condition of interior bearing walls, exterior roof, fire sprinkler and/or standpipe and hose (if located in the Common Areas) or other automatic fire extinguishing systems including fire alarm and/or smoke detection systems and equipment, fire hydrants, parking lots, walkways, parkways, driveways, landscaping, fences, signs (excluding tenant signage), main sanitary sewer lines and utility systems serving the Common Areas and all parts thereof as well as providing the services for which there is a Common Area Operating Expense pursuant to Section 4.2. Landlord shall not be obligated to paint the exterior or interior surfaces of exterior walls nor shall Landlord be obligated to maintain, repair or replace windows, doors or plate glass of the Premises. Tenant shall have no right to make repairs to the Building or Building Complex at Landlord's expense. Landlord reserves the right, at any time, from time to time, to make alterations, expansions, or additions to the Building Complex and/or to build an additional story or stories on the Building or the portion of the Building in which the Premises are contained and to build buildings adjoining the same; provided, however, that such changes shall not materially alter the size of the Premises, deny reasonable ingress to and egress from the Premises or deny reasonable parking. In the event Landlord exercises any of its rights contained in this Section 8.2, at the option of Landlord, such areas shall be treated as though they were originally a part of the Building Complex, and appropriate modifications of Tenant's Share and other shared expenses as set forth in this Lease shall be made by Landlord.

8.3 Utility Installations, Trade Fixtures, Alterations.

(a) Definitions, Consent Required. "Utility Installations" means all air lines, power panels, electrical distribution, natural gas distribution and equipment, security, fire protection systems, communications systems, lighting fixtures, heating, ventilating and air conditioning equipment, plumbing, and fencing in, on, or about the Premises. "Trade Fixtures" means Tenant's machinery and equipment used specifically for the conduct of Tenant's business (vis-à-vis generally used in any business) which can be removed without doing material damage to the Premises. "Alterations" means any modification of the improvements on the Premises after the Premises Delivery Date or Commencement Date, other than Utility Installations or Trade Fixtures and the Landlord's Work (if applicable) and Tenant's Work contained in the Work Letter. "Tenant-Owned Alterations and/or Utility Installations" means Alterations and/or Utility Installations made by Tenant that are not yet owned by Landlord pursuant to Section 8.4(a). Tenant shall not make nor cause to be made any Alterations or Utility Installations in, on, under or about the Premises without Landlord's prior written consent, except as provided below. Tenant may, however, make non-structural Alterations and Utility Installations to the interior of the Premises (excluding the roof) without Landlord's consent but upon notice to Landlord, so long as they are not visible from the outside of the Premises, do not involve puncturing, relocating or removing the roof or any existing walls or changing or interfering with the main utility, fire sprinkler or fire detection systems and the cumulative cost thereof during the Term of this Lease as extended does not exceed Five Thousand Dollars ($5,000.00).

(b) Consent. Any Alterations or Utility Installations that Tenant shall desire to make and which require the consent of the Landlord shall be presented to Landlord in written form with detailed plans. All consents given by Landlord, whether by virtue of Section 8.3(a) or by subsequent specific consent, shall be deemed conditioned upon: (i) Tenant acquiring all applicable permits required by governmental authorities; (ii) the furnishing of copies of such permits, together with a copy of the plans and specifications for the Alteration or Utility Installation to Landlord prior to commencement of the work thereon; and (iii) the compliance by Tenant with all conditions of said permits in a prompt and expeditious manner. Any Alterations or Utility Installations by Tenant during the Term of this Lease shall be done in a good and workmanlike manner, with good and sufficient materials, and shall be in compliance with all Applicable Requirements. Tenant shall promptly, upon completion thereof, furnish Landlord with as-built plans and specifications therefor. Landlord may, (but without obligation to do so) condition its consent to any requested Alteration or Utility Installation that costs Five Thousand Dollars ($5,000.00) or more upon Tenant providing Landlord with a lien and completion bond according to the terms and conditions set forth in Section 8.3(c). Upon submitting detailed plans to Landlord pursuant to this paragraph, Tenant shall pay Landlord Five Hundred Dollars ($500.00) as a non-refundable review fee for Landlord's review and potential consent to an Alterations or Utility Installations that Tenant shall desire to make which require Landlord's consent.

(c) Lien Protection. Subject to the provisions of this Section, Tenant shall pay when due all claims for labor or materials furnished or alleged to have been furnished to or for Tenant at or for use on the Premises, which claims are or may be secured by any mechanic's or materialmen's lien against the Premises or any interest therein. Tenant shall give Landlord not less than ten (10) days' notice prior to the commencement of any work in, on, or about the Premises, and Landlord shall have the right to post notices of non-responsibility in or on the Premises as provided by law. If Tenant shall, in good faith, contest the validity of any such lien, claim or demand, then Tenant shall, at its sole expense, defend and protect itself, Landlord, and the Premises against the same and shall pay and satisfy any such adverse judgment that may be rendered in such action before the enforcement of the same against the Landlord or the Premises. If Landlord shall require, Tenant shall furnish to Landlord a surety bond satisfactory to Landlord in an amount equal to one-hundred and fifty percent (150%) of the amount of such contested lien, claim or demand, indemnifying Landlord against liability for the same, as required by law for the holding of the Premises free from the effect of such lien or claim. In addition, Landlord may require Tenant to pay Landlord's reasonable attorneys' fees and costs in participating in such action if Landlord shall decide it is to its best interest to do so.

8.4 Ownership, Removal, Surrender, and Restoration.

(a) Ownership. Subject to Landlord's right to require their removal and to cause Tenant to become the owner thereof as hereinafter provided in this Section 8.4, all Alterations and Utility Installations made to the Premises by Tenant shall be the property of and owned by Tenant, but considered a part of the Premises. Landlord may, at any time and at its subjective discretion, elect in writing delivered to Tenant to be the owner of all or any specified part of the Tenant-Owned Alterations and/or Utility Installations. Unless otherwise instructed per Section 8.4(b), all Tenant-Owned Alterations and/or Utility Installations shall, at the expiration or earlier termination of this Lease, become the property of Landlord and remain upon the Premises and be surrendered by Tenant with the Premises.

(b) Removal. Unless otherwise agreed in written notice from Landlord, it may require that any or all Tenant-Owned Alterations or Utility Installations be removed by the expiration or earlier termination of this Lease, notwithstanding that their installation may have been consented to by Landlord. Landlord may require the removal at any time of all or any part of any Alterations or Utility Installations made without the required consent of Landlord.

(c) Surrender/Restoration. Tenant shall surrender the Premises by the Expiration Date or any earlier termination date, clean and free of debris and in good operating order, condition and state of repair, ordinary wear and tear excepted. Ordinary wear and tear shall not include any damage or deterioration that would have been prevented by good maintenance practice or by Tenant performing all of its obligations under this Lease. Except as otherwise specified herein, the Premises, as surrendered, shall include the Tenant-Owned Alterations and/or Utility Installations. The restoration obligation of Tenant shall include the repair of any damage occasioned by the installation, maintenance or removal of Tenant's Trade Fixtures, furnishings, equipment, and Tenant-Owned Alterations and/or Utility Installations, as well as the removal of any storage tank installed by or for Tenant, and the removal, replacement, or remediation of any soil, material or ground water contaminated by Tenant, all as may then be required by Applicable Requirements or good practice. Tenant's Trade Fixtures shall remain the property of Tenant and shall be removed by Tenant subject to its obligation to repair and restore the Premises per this Lease, except that, in Landlord's sole subjective discretion, Tenant shall not remove from the Premises and Landlord shall own at the end of the Term any Trade Fixtures for which Tenant was reimbursed, in whole or in part, by Landlord out of the Allowance. Should Landlord choose not to retain such Trade Fixtures pursuant to the preceding sentence, Tenant shall remove the same at its sole expense. Any Trade Fixtures, Alterations, or Utility Installations not removed upon the expiration of this Lease shall be deemed abandoned, and may be disposed of by Landlord, as Landlord may determine appropriate, without further notice to Tenant. Tenant shall pay Landlord all expenses incurred in connection with such items, including, but not limited to, the costs to remove them and of repairing any damage to the Premises caused by removal of such items. Tenant's obligation under this Section 8.4(c) shall survive the expiration or other termination of the Lease.

9. INSURANCE; INDEMNITY.

9.1 Payment of Premiums and Coverage Conditions. The cost of the premiums for the insurance policies maintained by Landlord under this Article 9 shall be a Common Area Operating Expense pursuant to Section 4.2. Premiums for policy periods commencing prior to, or extending beyond, the Term of this Lease shall be prorated to coincide with the corresponding Commencement Date or Expiration Date. Insurance required of Tenant in this Article 9 shall be in companies duly licensed to transact business in the state where the Premises are located, and maintaining during the policy term a "General Policyholders Rating" of at least A-, VIII, or such other rating as may be required by Lenders, as set forth in the most current ratings by A.M. Best (or similar industry publication should A.M. Best cease publication of such ratings). Tenant shall not do or permit to be done anything which shall invalidate the insurance policies referred to in this Article 9. Tenant shall cause to be delivered to Landlord, within seven (7) days after the earlier of the Delivery Date or the Commencement Date evidence of the existence and amounts of, the insurance required under Sections 9.2(a) and 9.4. No such policy shall be cancelable or subject to material modification except after thirty (30) days prior written notice to Landlord. Tenant shall, at least thirty (30) days prior to the expiration of such policies, furnish Landlord with evidence of renewals or "insurance binders" evidencing renewal thereof, or Landlord may order such insurance and charge the cost thereof to Tenant, which amount shall be payable by Tenant to Landlord upon demand.

9.2 Liability Insurance.

(a) Carried by Tenant. Tenant shall obtain and keep in force during the Term of this Lease a commercial general liability policy of insurance protecting Tenant, Landlord and any Lender(s) whose names have been provided to Tenant in writing (as additional insureds) against claims for bodily injury, personal injury, death, and property damage based upon, involving or arising out of the ownership, use, occupancy or maintenance of the Premises and all areas appurtenant thereto. Such insurance shall be on an occurrence basis providing single limit coverage in an amount not less than two million dollars ($2,000,000) per occurrence. The limit(s) for the auto liability and general liability may be achieved through a combination of primary general liability, primary auto liability, and follow-form umbrella. The primary general liability must include an "Additional Insured – Managers or Lessors of Premises" endorsement and contain the "Amendment of Total Pollution Exclusion" endorsement removing the exclusion for damage caused by heat, smoke or fumes from a hostile fire or building HVAC dehumidifying equipment. All policies carried by Tenant pursuant to this subsection shall not contain any intra-insured exclusions as between insured persons or organizations, but shall include coverage for liability assumed under this Lease as an "insured contract" for the performance of Tenant's indemnity obligations under this Lease. The limits of said insurance required by this Lease or as carried by Tenant shall not, however, limit the liability of Tenant nor relieve Tenant of any obligation hereunder. All insurance to be carried by Tenant shall be primary to and not contributory with any similar insurance carried by Landlord, whose insurance shall be considered excess insurance only. In addition, Tenant shall maintain workers' compensation insurance as is required by state law and automobile liability insurance at the same limits required of the commercial general liability policy set forth in this Section 9.2(a). If an umbrella liability policy is used to comply with the lease requirements, this policy must schedule the primary general liability, auto liability, and employer's liability as underlying policies.

(b) Carried By Landlord. Subject to reimbursement of premiums as described in Section 9.1, Landlord shall also maintain liability insurance described in Section 9.2(a) above, in addition to and not in lieu of, the insurance required to be maintained by Tenant. Tenant shall not be named as an additional insured therein.

9.3 General Property Insurance. Subject to reimbursement of premiums as described in Section 9.1, Landlord shall maintain property damage insurance on such portions of the Building Complex from time to time which Landlord has the obligation to maintain and repair under this Lease, above foundation walls, insuring against loss or damage by fire or other casualty covered by a so-called "special form" policy, in such amounts, and from companies and on such terms and conditions as Landlord deems appropriate from time to time. Tenant-Owned Alterations and/or Utility Installations, Trade Fixtures and Tenant's personal property shall be insured by Tenant pursuant to Section 9.4. Landlord may also obtain and keep in force during the Term of this Lease a policy or policies in the name of Landlord, with loss payable to Landlord and any Lender(s), insuring the loss of the full rental and other charges payable by all Tenants of the Building to Landlord for one year (including all Real Property Taxes, insurance costs, all Common Area Operating Expenses and any scheduled rental increases). Tenant shall pay for any increase in the premiums for the property insurance of the Building and for the Common Areas or other buildings in the Building Complex if said increase is caused by Tenant's acts, omissions, use or occupancy of the Premises.

9.4 Tenant's Property Insurance. Subject to the requirements of Section 9.5, Tenant at its cost shall either by separate policy or, at Landlord's option, by endorsement to a policy already carried, maintain insurance coverage on all of Tenant's personal property, Trade Fixtures and Tenant-Owned Alterations and Utility Installations in, on, or about the Premises similar in coverage to that carried by Landlord as the insuring party under Section 9.3. Such insurance shall be full replacement cost coverage with a deductible not to exceed $1,000 per occurrence. The proceeds from any such insurance shall be used by Tenant for the replacement of personal property and the restoration of Trade Fixtures and Tenant-Owned Alterations and Utility Installations. Upon request from Landlord, Tenant shall provide Landlord with written evidence that such insurance is in force.

9.5 Waiver. Tenant and Landlord each hereby release and relieve the other, and waive their entire right to recover damages (whether in contract or in tort) against the other, for loss or damage to their respective property or for any business interruption arising out of or incident to the perils to the extent such loss or damage or business interruption is coverable by a standard or special form policy regardless of whether such insurance is carried or not, or if so carried, payable to or protects Landlord or Tenant or both. The effect of such releases and waivers of the right to recover damages shall not be limited by the amount of insurance carried or required, or by any deductibles applicable to those policies. Landlord and Tenant agree to have their respective insurance companies issuing property damage insurance waive any right to subrogation that such companies may have against Landlord or Tenant, as the case may be, so long as the insurance is not invalidated thereby.

9.6 Indemnity. Except to the extent caused by Landlord's or its agent's or employee's gross negligence or willful misconduct, Tenant shall indemnify, protect, defend and hold harmless the Premises, Landlord and its agents, employees, Landlord's master or ground landlord, members, partners and Lender(s), from and against any and all claims, loss of rents and/or damages, costs, liens, judgments, penalties, loss of permits, reasonable attorneys' and consultants' fees, expenses and/or liabilities arising out of, involving, or in connection with, the occupancy of the Premises by Tenant, the conduct of Tenant's business, any act, omission or neglect of Tenant, its agents, contractors, employees or invitees, and out of any Default or breach by Tenant in the performance in a timely manner of any obligation on Tenant's part to be performed under this Lease. The foregoing shall include, but not be limited to, the defense or pursuit of any claim or any action or proceeding involved therein, and whether or not (in the case of claims made against Landlord) litigated and/or reduced to judgment. In case any action or proceeding be brought against Landlord by reason of any of the foregoing matters, Tenant, upon notice from Landlord, shall diligently defend the same at Tenant's expense by counsel reasonably satisfactory to Landlord, and Landlord shall cooperate with Tenant in such defense. Landlord need not have first paid any such claim in order to be so indemnified. The provisions of this Section 9.6 shall survive the expiration or earlier termination of this Lease.

9.7 Exemption of Landlord from Liability. Landlord shall not be liable for injury or damage to the person or goods, wares, merchandise or other property of Tenant, Tenant's employees, contractors, invitees, customers, or any other person in or about the Premises, whether such damage or injury is caused by or results from fire, steam, electricity, gas, water or rain or from the breakage, leakage, obstruction or other defects of pipes, fire sprinklers, wires, appliances, plumbing, air conditioning or lighting fixtures, or from any other cause, whether said injury or damage results from conditions arising upon the Premises or upon other portions of the Building of which the Premises are a part, from other sources or places, and regardless of whether the cause of such damage or injury or the means of repairing the same is accessible or not. Landlord shall not be liable for any damages arising from any act or neglect of any other tenant of Landlord nor from the failure by Landlord to enforce the provisions of any other lease in the Building Complex, except to the extent such failure causes Landlord to materially default under its covenants and obligations under this Lease. Notwithstanding Landlord's negligence or breach of this Lease, Landlord shall under no circumstances be liable for injury to Tenant's business or for any loss of income or profit therefrom, or for any consequential damages of Tenant. Notwithstanding anything to the contrary contained herein, Landlord's liability under this Lease shall be limited to its interest in the Building Complex.

10. DAMAGE OR DESTRUCTION.

10.1 Total Damage. If the Premises or the Building shall be so damaged by fire or other casualty as to render the Premises wholly untenantable, and if such damage shall be so great that a competent architect, in good standing, selected by Landlord shall certify in writing to Landlord and Tenant within ninety (90) days of said casualty that the Premises, with the exercise of reasonable diligence, cannot be made fit for occupancy within one hundred eighty (180) working days from the happening thereof, then this Lease shall cease and terminate from the date of the occurrence of such damage and Tenant shall thereupon surrender to Landlord the Premises and all interest therein hereunder and Landlord may reenter and take possession of the Premises and remove Tenant from the same. Tenant shall pay rent, duly apportioned, up to and including the time of such termination of this Lease. If, however, the damage shall be such that said architect shall certify within said ninety (90) day period that the Premises can be made tenantable within said one hundred eighty (180) working day period, then, except as hereinafter provided, Landlord shall repair the damage so done (to the extent of the Building standard tenant finish allowance then provided by Landlord to Tenants in the Building) with all reasonable speed.

10.2 Partial Damage. If the Premises shall be slightly damaged by fire or other casualty, but not so as to render the same wholly untenantable or to require a repair period in excess of one hundred eighty (180) working days, then, Landlord, after receiving notice in writing of the occurrence of the casualty, except as hereafter provided, shall cause the same to be repaired to the extent of the base Tenant finish per the then-current standard allowance provided by Landlord to tenants in the Building with reasonable promptness. If the estimated repair period as established in accordance with the provisions of Section 10.1 above exceeds one hundred eighty (180) days, then the provisions of Section 10.1 shall control, notwithstanding the fact that the Premises are not wholly untenantable.

10.3 Building Damage. In case the Building throughout shall be so injured or damaged, whether by fire or otherwise (though said Premises may not be affected, or if affected, can be repaired within said one hundred eighty (180) days), that, within ninety (90) days after the happening of such injury, Landlord shall decide not to reconstruct or rebuild said Building, then, notwithstanding anything contained herein to the contrary, upon notice in writing to that effect given by Landlord to Tenant within said ninety (90) days, Tenant shall pay the rent, properly apportioned up to such date, this Lease shall terminate from the date of delivery of said written notice, and both parties hereto shall be freed and discharged of all further obligations hereunder.

10.4 Rent Abatement. Provided that the casualty is not the fault of Tenant, Tenant's agents, servants, or employees, Tenant's rent shall abate during any such period of Landlord's repair and restoration, but only to the extent of any recovery by Landlord under its rental insurance related to the Premises in the same proportion that the part of the Premises rendered untenantable bears to the whole.

10.5 Tenant's Obligation. In the event the Lease is not terminated under this Article 10, Tenant shall, at its expense, replace or fully repair Tenant's personal property and Alterations and/or Utility Installations installed by Tenant in the Premises existing on the date of the occurrence of the casualty and Tenant shall fully cooperate with Landlord in removing Tenant's personal property and any debris from the Premises to facilitate making of repairs.

11. REAL PROPERTY TAXES.

11.1 Payment of Taxes. Landlord shall pay the Real Property Taxes, as defined in Section 11.2, applicable to the Building Complex, and except as otherwise provided in Section 11.3, any such amounts shall be included in the calculation of Common Area Operating Expenses in accordance with the provisions of Section 4.2.

11.2 Real Property Tax Definition. The term "Real Property Taxes" means any form of real estate tax or assessment, general, special, ordinary or extraordinary, and any license fee, commercial rental tax, improvement bond or bonds, levy or tax imposed upon the Building Complex by any authority having the direct or indirect power to tax, including any city, state or federal government, or any school, agricultural, sanitary, fire, street, drainage, or other improvement district thereof, levied against any legal or equitable interest of Landlord in the Building Complex or any portion of the same, Landlord's right to rent or other income from the same, and/or Landlord's business of leasing the Premises as each may be levied or increased for any reason, including but not limited to, events occurring, or changes in Applicable Law taking effect, during the Term of this Lease, such as a change in the ownership of the Building Complex or in the improvements upon the Building Complex, the execution of this Lease, or any modification, amendment or transfer of it, and whether or not contemplated by the parties, and any reasonable expenses incurred by Landlord in contesting such taxes or assessment of the Building Complex. Real Property Taxes shall not include federal, state or local income taxes, franchise, gift, transfer, excise, capital stock, estate, succession, inheritance taxes, penalties or interest for late payment of taxes. In calculating Real Property Taxes for any calendar year, the Real Property Taxes for any real estate tax year shall be included in the calculation of Real Property Taxes for such calendar year based upon the number of days which such calendar year and tax year have in common.

11.3 Additional Improvements. Tenant's Share of Common Area Operating Expenses shall not include Real Property Taxes specified in the tax assessor's records and work sheets as being caused by additional improvements placed upon the Building Complex by other Tenants or by Landlord for the exclusive enjoyment of such other Tenants. Notwithstanding Section 11.1, Tenant shall pay to Landlord, at the time Common Area Operating Expenses are payable under Section 4.2, the entirety of any increase in Real Property Taxes if assessed solely by reason of Alterations, Trade Fixtures or Utility Installations placed upon the Premises by Tenant or at Tenant's request.

11.4 Joint Assessment. If the Building is not separately assessed, Real Property Taxes allocated to the Building shall be an equitable proportion of the Real Property Taxes for all of the land and improvements included within the tax parcel assessed, such proportion to be determined by Landlord from the respective valuations assigned in the assessor's work sheets or such other information as may be reasonably available. Landlord's reasonable determination thereof, in good faith, shall be conclusive.

11.5 Tenant's Taxes. Tenant shall pay prior to delinquency all taxes assessed against and levied upon Tenant-Owned Alterations and/or Utility Installations, Trade Fixtures, furnishings, equipment and all personal property of Tenant contained in the Premises or stored within the Building Complex. When possible, Tenant shall cause its Tenant-Owned Alterations and/or Utility Installations, Trade Fixtures, furnishings, equipment and all other personal property to be assessed and billed separately from the real property of Landlord. If any of Tenant's said property shall be assessed with Landlord's real property, Tenant shall pay Landlord the taxes attributable to Tenant's property within ten (10) days after receipt of a written statement setting forth the taxes applicable to Tenant's property. In addition, Tenant shall pay all taxes, including, without limitation, workers' compensation, general license or franchise taxes and rent taxes, if any, which may be required for the conduct of Tenant's business.

12. UTILITIES. Tenant shall pay directly for all utilities and services supplied to the Premises, including but not limited to electricity, water/sewer, telephone, security, natural gas/liquid propane, communications/internet/fiber optics, trash removal, and cleaning of the Premises, together with any taxes thereon. If any such utilities or services are not separately metered to the Premises or separately billed to the Premises, Tenant shall pay to Landlord a reasonable proportion to be determined by Landlord of all such charges jointly metered or billed with other premises in the Building, in the manner and within the time periods set forth in Section 4.2(d). In addition, Tenant shall reimburse Landlord for the reasonable costs incurred by Landlord in providing services to Tenant, which are shared by more than one tenant after ordinary business hours, including, without limitation, the costs for materials, additional wear and tear on equipment, utility charges and labor (including fringe benefits and overhead costs). Computation for Landlord's costs for providing such services will be made by Landlord's engineer, based on such engineer's survey of Tenant's excess usage.

13. ASSIGNMENT AND SUBLETTING.

13.1 Landlord's Consent Required.

(a) Tenant shall not voluntarily or by operation of law assign, transfer, mortgage or otherwise transfer or encumber (collectively, "Assign" or "Assignment") or sublet all or any part of Tenant's interest in this Lease or in the Premises without Landlord's prior written consent, which consent will not unreasonably be withheld, conditioned, or delayed, provided that: (i) Tenant has complied with the provisions of this Article 13; (ii) the proposed subtenant or assignee is engaged in a business in the Premises which will be used in a manner which is in keeping with the then standards of the Building Complex and does not conflict with any exclusive use rights granted to any other Tenant; (iii) the proposed subtenant or assignee has reasonable financial worth in light of the responsibilities involved and Tenant shall have provided Landlord with reasonable evidence thereof; (iv) there is no Event of Default under this Lease at the time it makes its request for such consent; (v) the proposed subtenant or assignee is not a governmental or quasi-governmental agency; (vi) the proposed subtenant or assignee is not a tenant under nor is currently negotiating a lease with Landlord; or (vii) the rent under such sublease or assignment is not less than the rent to be paid by Tenant for such space under the Lease and is not less than ninety percent (90%) of the rental rate then being offered by Landlord for similar space in the Building Complex. Notwithstanding anything contained in Article 13 to the contrary, in the event Tenant requests Landlord's consent to sublet all or a portion of the Premises or to Assign its interest in this Lease, Landlord shall have the right to: (x) consent to such sublease or assignment in its reasonable discretion as described in the preceding sentences; (y) refuse to grant such consent in Landlord's reasonable discretion based upon the criteria described above; or (z) refuse to grant such consent and terminate this Lease as to the portion of the Premises with respect to which such consent was requested; provided, however, if Landlord refuses to grant such consent and elects to terminate the Lease as to such portion of the Premises, Tenant shall have the right within fifteen (15) days after Landlord's exercise of its right to terminate to withdraw Tenant's request for such consent and remain in possession of the Premises under the terms and conditions of this Lease. In the event the Lease is terminated as set forth in this Article 13, such termination shall be effective as of the date set forth in a written notice from Landlord to Tenant, which date shall in no event be more than thirty (30) days following such notice. Tenant agrees that in the event it desires to sublease all or any portion of the Premises or Assign this Lease to any party, in whole or in part, Tenant shall notify Landlord not less than sixty (60) days prior to the date Tenant desires to sublease such portion of the Premises or Assign this Lease ("Tenant's Notice"). Tenant's Notice shall set forth a description of the Premises to be so sublet or assigned and the terms and conditions on which Tenant desires to sublet the Premises or Assign this Lease. Landlord shall have ten (10) business days following receipt of Tenant's Notice to exercise Landlord's rights pursuant to (x), (y) and (z) above. If Landlord consents to such sublease or assignment, and if for any reason Tenant is unable to sublet said portion of the Premises or Assign the applicable portion of its interest in this Lease on the terms and conditions contained in Tenant's Notice within one hundred and twenty (120) days following the delivery to Landlord of its original notice, Tenant agrees to reoffer the Premises to Landlord in accordance with the provisions hereof prior to subleasing or Assigning the same to any third party.

(b) Notwithstanding anything in this Lease to the contrary and provided that Tenant provides Landlord with written notice at least forty-five (45) days in advance, Tenant may, without complying with the terms and conditions of Section 13.1(a) of this Lease, sublet any or all of the Premises or Assign this Lease on such terms and conditions as Tenant may elect to: (a) a successor corporation or other legal entity by merger, consolidation, conversion, reorganization, foreclosure or transfer in lieu of foreclosure; (b) a person or entity that acquires all or substantially all of Tenant's assets provided the acquiring person or entity enters into a written assumption agreement regarding this Lease, and/or (c) any one or more entities which control, are controlled by or are under common control with Tenant, which shall include any joint venture, partnership, corporation or other entity of which Tenant has at least a fifty and one tenth percent (50.1%) interest. Should Tenant sublet any or all of the Premises or Assign this Lease pursuant to this subsection, such sublease or assignment shall not allow the subtenant or assignee to further sublease all or part of the Premises or assign this Lease without Landlord's written consent, which consent shall not be unreasonably withheld, conditioned, or delayed.

(c) Notwithstanding anything in Section 13.1(b) of this Lease to the contrary, the involvement of Tenant or its assets in any transaction or series of transactions (by way of merger, sale, acquisition, financing, refinancing, transfer, leveraged buy-out or otherwise), whether or not a formal assignment or hypothecation of this Lease or Tenant's assets occurs, which results or will result in a reduction of the Net Worth of Tenant by an amount equal to or greater than twenty-five percent (25%) of such Net Worth of Tenant as it was represented to Landlord at the time of full execution and delivery of this Lease, or at the time of the most recent assignment to which Landlord has consented, or as it exists immediately prior to said transaction or transactions constituting such reduction, at whichever time said Net Worth of Tenant was or is greater, shall be considered an assignment of this Lease by Tenant to which Landlord may reasonably withhold its consent; provided, however, that if Tenant is, or is owned or controlled by, a corporation whose stock is traded through a national exchange, then this subsection shall not apply; provided further, however, that the foregoing exception is not intended to nor shall it permit Tenant to transfer its interest under this Lease as part of a fraud or subterfuge to intentionally avoid its obligations under this Lease (for example, transferring its interest to a shell corporation that subsequently files a bankruptcy), and any such transfer shall constitute an Event of Default.

(d) A purposed assignment or subletting of Tenant's interest in this Lease without Landlord's specific prior written consent, when required under this Lease, is void and shall, at Landlord's option in its sole subjective discretion be (X) an Event of Default curable after notice per Section 14.1(c), or (Y) a non-curable Event of Default without the necessity of any notice and grace period. If Landlord elects to treat such unconsented assignment or subletting as a non-curable Default, Landlord shall have the right to either: (i) terminate this Lease, or (ii) upon thirty (30) days written notice ("Landlord's Notice"), increase the Base Rent for the Premises to the greater of the then fair market rental value of the Premises, as reasonably determined by Landlord, or one hundred ten percent (110%) of the Base Rent then in effect. Further, upon such non-curable Event of Default and rental adjustment: (i) any index-oriented rental or price adjustment formulas contained in this Lease shall be adjusted to require that the base index be determined with reference to the index applicable to the time of such adjustment; and (ii) any fixed rental adjustments scheduled during the remainder of the Lease Term shall be increased in the same ratio as the new rental bears to the Base Rent in effect immediately prior to the adjustment specified in Landlord's Notice.

(e) Tenant's remedy for any breach of this Section 13.1 by Landlord shall be limited to compensatory damages and/or injunctive relief.

13.2 <u>Terms and Conditions Applicable to Assignment and Subletting</u>.

(a) Regardless of Landlord's consent, any assignment or subletting shall not: (i) be effective without the express written assumption by such assignee or subtenant of the obligations of Tenant under this Lease; (ii) release Tenant of any obligations hereunder; nor (iii) alter the primary liability of Tenant for the payment of Rent and other sums due Landlord hereunder or for the performance of any other obligations to be performed by Tenant under this Lease.

(b) Landlord may accept any rent or performance of Tenant's obligations from any person other than Tenant pending approval or disapproval of an Assignment. Neither a delay in the approval or disapproval of such Assignment nor the acceptance of any rent for performance shall constitute a waiver or estoppel of Landlord's right to exercise its remedies for the Event of Default by Tenant of any of the terms, covenants or conditions of this Lease.

(c) The consent of Landlord to any Assignment or subletting shall not constitute a consent to any subsequent Assignment or subletting by Tenant or to any subsequent or successive Assignment or subletting by the assignee or subtenant. However, Landlord may consent to subsequent sublettings and Assignments of the sublease or any amendments or modifications thereto without notifying Tenant or anyone else liable under this Lease or the sublease and without obtaining their consent, and such action shall not relieve such persons from liability under this Lease or the sublease.

(d) If there is an Event of Default of Tenant's obligations under this Lease, Landlord may proceed directly against Tenant, any Guarantors, or anyone else responsible for the performance of Tenant's obligations under this Lease, including any subtenant, without first exhausting Landlord's remedies against any other person or entity responsible therefor to Landlord, or any security held by Landlord.

(e) Each request for consent to an Assignment or subletting shall be in writing, accompanied by information relevant to Landlord's determination as to the financial and operational responsibility and appropriateness of the proposed assignee or subtenant, including but not limited to the intended use and/or required modification of the Premises, if any, together with a non-refundable fee of One Thousand Five Hundred No/100 Dollars ($1,500.00), as reasonable consideration for Landlord's considering and processing the request for consent. Tenant agrees to provide Landlord with such other or additional information and/or documentation as may be reasonably requested by Landlord.Furthermore, should Landlord's Lender require or otherwise request to review and approve such sublease or assignment, then Tenant shall promptly on demand reimburse Landlord for all such costs charged to it by its Lender.

(f) Any assignee of, or subtenant under, this Lease shall, by reason of accepting such Assignment or entering into such sublease, be deemed for the benefit of Landlord, to have assumed and agreed to conform and comply with each and every term, covenant, condition and obligation herein to be observed or performed by Tenant during the term of said assignment or sublease, other than such obligations as are contrary to or inconsistent with provisions of an assignment or sublease to which Landlord has specifically consented in writing.

(g) The occurrence of a transaction described in Section 13.1I shall give Landlord the right (but not the obligation) to require that the Security Deposit be increased by an amount equal to six (6) times the then monthly payment amount of Base Rent, and Landlord may make the actual receipt by Landlord of the Security Deposit increase a condition to Landlord's consent to such transaction. If prior to such transaction, there is no Security Deposit, then Tenant shall deposit a Security Deposit with Landlord in an amount equal to the increase set forth in the preceding sentence.

(h) Landlord, as a condition to giving its consent to any assignment or subletting, may require that the amount and adjustment schedule of the rent payable under this Lease be adjusted to what is then the market value and/or adjustment schedule for property similar to the Premises as then constituted, as determined by Landlord.

(i) If Tenant collects any rental or other amounts from a subtenant or assignee in excess of the Base Rent and Tenant's Share of Common Area Operating Expenses, Tenant shall pay Landlord, as and when Tenant receives the same, all such excess amounts received by Tenant less any improvements, brokers' fees, advertising expenses or other concessions to the extent all of the above are actually paid for by Tenant in the procurement of a subtenant or assignee.

13.3 Additional Terms and Conditions Applicable to Subletting. The following terms and conditions shall apply to any subletting by Tenant of all or any part of the Premises and shall be deemed included in all subleases under this Lease whether or not expressly incorporated therein:

(a) Tenant hereby assigns and transfers to Landlord all of Tenant's interest in all rentals and income arising from any sublease of all or a portion of the Premises heretofore or hereafter made by Tenant, and Landlord may collect such rent and income and apply same toward Tenant's obligations under the Lease; provided, however, that until an Event of Default (as defined in Section 14.1) shall occur in the performance of Tenant's obligations under this Lease, Tenant may, except as otherwise may be provided in this Lease, receive, collect and enjoy the rents accruing under such sublease. Landlord shall not, by reason of the foregoing provision except as otherwise provided in this Lease, receive, collect and enjoy the rents accruing under such sublease. Landlord shall not, by reason of the foregoing provision or any other assignment of such sublease to Landlord, nor by reason of the collection of the rents from a subtenant, be deemed liable to the subtenant for any failure of Tenant to perform and comply with any of Tenant's obligations to such subtenant under such sublease. Tenant hereby irrevocably authorizes and directs any such subtenant, upon receipt of a written notice from Landlord stating that an Event of Default exists in the performance of Tenant's obligations under this Lease to pay to Landlord the rents and other charges due and to become due under the sublease. Subtenant shall rely upon any such statement and request from Landlord and shall pay such rents and other charges to Landlord without any obligation or right to inquire as to whether such Event of Default exists and notwithstanding any notice from or claim from Tenant to the contrary, Tenant shall have no right or claim against such subtenant, or, until the Event of Default has been timely cured (if curable), against Landlord, for any such rents and other charges so paid by said subtenant to Landlord.

(b) In the event of an Event of Default by Tenant in the performances of its obligations under this Lease, Landlord, at its option and without any obligation to do so, may require any subtenant to attorn to Landlord, in which event Landlord shall undertake the obligations of the sublandlord under such sublease from the time of the exercise of said option to the expiration of such sublease; provided, however, Landlord shall not be liable for any prepaid rents or security deposit paid by such subtenant to such sublandlord or for any other prior defaults or breaches of such sublandlord under such sublease.

(c) Any matter or thing requiring the consent of the sublandlord under a sublease shall also require the consent of Landlord herein.

(d) No subtenant under a sublease approved by Landlord shall further assign or sublet all or any part of the Premises without Landlord's prior written consent, which may be granted or denied in Landlord's sole discretion. Any purported sublease or assignment without Landlord's prior written consent is void.

14. DEFAULT; REMEDIES.

14.1 Default. A "Default" by Tenant is defined as a failure by Tenant to observe, comply with or perform any of the terms, covenants, conditions or rules applicable to Tenant under this Lease. Additionally, each one of the following shall be an "Event of Default":

(a) The failure to (i) operate Tenant's business in the Premises during the Term in compliance with the Permitted Use, (ii) take occupancy of the Premises no later than (90) days after the Commencement Date and continue to occupy it for the entire Term, (iii) vacating the Premises for fourteen (14) consecutive days without reoccupying the same, or (iv) the abandonment of the Premises.

(b) Except as expressly otherwise provided in this Lease, the failure by Tenant to make any payment of Base Rent, Security Deposit, Tenant's Share of Common Area Operating Expenses, Additional Rent, or any other rent or other monetary payment required to be made by Tenant under this Lease as and when due, the failure by Tenant to provide Landlord with reasonable evidence of insurance or surety bond required under this Lease, or the failure of Tenant to fulfill any obligation under this Lease which endangers or threatens life or property, where such failure continues for a period of three (3) days following written notice thereof by or on behalf of Landlord to Tenant.

(c) Except as expressly otherwise provided in this Lease, the failure by Tenant to provide Landlord with reasonable written evidence (in duly executed original form, if applicable) of: (i) compliance with Applicable Requirements per Section 7.5; (ii) the inspection, maintenance and service contracts required by Section 8.1(b); (iii) the rescission of an unauthorized and/or void assignment or subletting per Article 13; (iv) a Tenancy Statement per Articles 17 or 36; (v) the subordination or non-subordination of this Lease per Article 30; (vi) the guaranty of the performance of Tenant's obligations under this Lease if required under Section 1.18 and Article 36; (vii) the execution of any document requested under Article 40 (*easements*); or (viii) any other documentation or information which Landlord may reasonably require of Tenant under the terms of this Lease, where any such failure continues for a period of ten (10) days following written notice by or on behalf of Landlord to Tenant.

(d) A Default by Tenant as to the terms, covenants, conditions or provisions of this Lease, or of the rules adopted under Article 39 that are to be observed, complied with or performed by Tenant, other than those described in Sections 14.1(a), (b) or (c) above, where such Default continues for a period of thirty (30) days after written notice thereof by or on behalf of Landlord to Tenant; provided, however, that if the nature of Tenant's Default is such that more than thirty (30) days are reasonably required for its cure, then it shall not be deemed to be a breach of this Lease by Tenant if Tenant commences such cure within said thirty (30) day period and thereafter diligently prosecutes such cure to completion.

(e) The occurrence of any of the following events: (i) the making by Tenant of any general arrangement or assignment for the benefit of creditors; (ii) Tenant's becoming a "debtor" as defined in 11 U.S. Code Section 101 or any successor statute thereto (unless, in the case of a petition filed against Tenant, the same is dismissed within sixty (60) days); (iii) the appointment of a trustee or receiver to take possession of substantially all of Tenant's assets located at the Premises or of Tenant's interest in this Lease, where possession is not restored to Tenant within thirty (30) days; or (iv) the attachment, execution or other judicial seizure of substantially all of Tenant's assets located at the Premises or of Tenant's interest in this Lease, where such seizure is not discharged within thirty (30) days; provided, however, in the event that any provision of this Section 14.1l is contrary to any applicable law, such provision shall be of no force or effect, and shall not affect the validity of the remaining provisions.

(f) The discovery by Landlord that any financial statement of Tenant or of any Guarantor, given to Landlord by Tenant or any Guarantor, was materially false.

(g) If the performance of Tenant's obligations under this Lease is guaranteed: (i) the termination of a Guarantor's liability with respect to the Lease other than in accordance with the terms of such guaranty; (ii) a Guarantor's becoming insolvent or the subject of a bankruptcy filing; (iii) a Guarantor's refusal to honor the guaranty; or (iv) a Guarantor's breach of its guaranty obligation on an anticipatory breach basis, and Tenant's failure within sixty (60) days following written notice by or on behalf of Landlord to Tenant of any such event, to provide Landlord with written alternative assurances of security, which, when coupled with the then existing resources of Tenant, equals or exceeds the combined financial resources of Tenant and the Guarantors that existed at the time of execution of this Lease.

14.2 <u>Remedies</u>.

(a) If any one or more Event of Default shall happen, then Landlord shall have the right at Landlord's election, then or at any time thereafter either:

(i) Without demand or notice, to reenter and take possession of the Premises or any part thereof and repossess the same as of Landlord's former estate and expel Tenant and those claiming possession through or under Tenant and remove the effects of both or either, without being deemed guilty of any manner of trespass and without prejudice to any remedies for arrears of rent or preceding breach of covenants or conditions. Should Landlord elect to reenter, as provided in this Section 14.2(a)(i), or should Landlord take possession pursuant to legal proceedings or pursuant to any notice provided for by law, Landlord may, from time to time, without terminating this Lease, relet the Premises or any part thereof, either alone or in conjunction with other portions of the Building of which the Premises are a part, in Landlord's or Tenant's name but for the account of Tenant, for such term or terms (which may be greater or less than the period which would otherwise have constituted the balance of the Term of this Lease) and on such conditions and upon such other terms (which may include concessions of free rent and alteration and repair of the Premises) as Landlord, in its absolute discretion, may determine and Landlord may collect and receive the rents therefor. Landlord shall in no way be responsible or liable for any failure to relet the Premises, or any part thereof, or for any failure to collect any rent due upon such reletting; provided, however, Landlord shall use reasonable efforts to relet the Premises. No such reentry or taking possession of the Premises by Landlord shall be construed as an election on Landlord's part to terminate this Lease unless a written notice of such intention be given to Tenant. No notice from Landlord hereunder or under a forcible entry and detainer statute or similar law shall constitute an election by Landlord to terminate this Lease unless such notice specifically so states. Landlord reserves the right following any such reentry and/or reletting to exercise its right to terminate this Lease by giving Tenant such written notice, in which event the Lease will terminate as specified in said notice. If Landlord elects to take possession of the Premises as provided in this Section 14.2(a)(i) without terminating the Lease, Tenant shall pay to Landlord (A) the Rent and all other sums as herein provided, which would be payable hereunder if such repossession had not occurred, less (B) the net proceeds, if any, of any reletting of the Premises after deducting all of Landlord's expenses incurred in connection with such reletting, including, but without limitation, all repossession costs, brokerage commissions, legal expenses, reasonable attorneys' fees, expenses of employees, alteration, remodeling, and repair costs and expenses of preparation for such reletting.

If, in connection with any reletting, the new lease term extends beyond the existing term or the premises covered thereby include other premises not part of the Premises, a fair apportionment of the rent received from such reletting and the expenses incurred in connection therewith, as provided aforesaid, will be made in determining the net proceeds received from such reletting. In addition, in determining the net proceeds from such reletting, any rent concessions will be apportioned over the term of the new lease. Tenant shall pay such amounts to Landlord monthly on the days on which the Rent and all other amounts owing hereunder would have been payable if possession had not been retaken and Landlord shall be entitled to receive the same from Tenant on each such day; or

(ii) To give Tenant written notice of intention to terminate this Lease on the date of such given notice or on any later date specified therein and, on the date specified in such notice, Tenant's right to possession of the Premises shall cease and the Lease shall thereupon be terminated, except as to Tenant's liability hereunder as hereinafter provided, as if the expiration of the term fixed in such notice were the end of the term herein originally demised. In the event this Lease is terminated pursuant to the provisions of this Subparagraph (ii), Lessee shall remain liable to Landlord for damages in an amount equal to the Rent and all other sums which would have been owing by Tenant hereunder for the balance of the term had this Lease not been terminated less the net proceeds, if any, of any reletting of the Premises by Landlord subsequent to such termination, after deducting all Landlord's expenses in connection with such reletting, including, but without limitation, the expenses enumerated above. Landlord shall be entitled to collect such damages from Tenant monthly on the days on which the Rent and other amounts would have been payable hereunder if this Lease had not been terminated and Landlord shall be entitled to receive the same from Tenant on each such day. Alternatively, at the option of Landlord, in the event this Lease is terminated, Landlord shall be entitled to recover forthwith against Tenant as damages for loss of the bargain and not as a penalty an amount equal to the worth at the time of termination of the excess, if any, of the amount of Rent reserved in this Lease for the balance of the term hereof over the then Reasonable Rental Value of the Premises for the same period plus all amounts incurred by Landlord in order to obtain possession of the Premises and relet the same, including reasonable attorneys' fees, reletting expenses, alterations and repair costs, brokerage commissions and all other like amounts. "Reasonable Rental Value" means the amount of rental which Landlord can obtain as rent for the Premises for the remaining balance of the Term.

(b) Suit or suits for the recovery of the rents and other amounts and damages set forth hereinabove may be brought by Landlord, from time to time, at Landlord's election, and nothing herein shall be deemed to require Landlord to await the date whereon this Lease or the term hereof would have expired had there been no such Event of Default by Tenant or no such termination, as the case may be. Each right and remedy provided for in this Lease shall be cumulative and shall be in addition to every other right or remedy provided for in this Lease or now or hereafter existing at law or in equity or by statute or otherwise, including, but not limited to, suits for injunctive relief and specific performance. The exercise or beginning of the exercise by Landlord of any one or more of the rights or remedies provided for in this Lease or now or hereafter existing at law or in equity or by statute or otherwise shall not preclude the simultaneous or later exercise by Landlord of any or all other rights or remedies provided for in this Lease or now or hereafter existing at law or in equity or by statute or otherwise. All such rights and remedies shall be considered cumulative and non-exclusive. All costs incurred by Landlord in connection with collecting any rent or other amount and damages owing by Tenant pursuant to the provisions of this Lease, or to enforce any provision of this Lease, shall also be recoverable by Landlord from Tenant. Further, if an action is brought pursuant to the terms and provisions of the Lease, the prevailing party in such action shall be entitled to recover from the other party any and all reasonable attorneys' fees incurred by such prevailing party in connection with such action.

(c) No failure by Landlord to insist upon the strict performance of any agreement, term, covenant or condition hereof or to exercise any right or remedy consequent upon a Default thereof and no acceptance of full or partial rent during the continuance of any such Default shall constitute a waiver of any such Default or of such agreement, term, covenant, or condition. No agreement, term, covenant, or condition hereof to be performed or complied with by Tenant and no Default thereof shall be waived, altered, or modified, except by written instrument executed by Landlord. No waiver of any Default shall affect or alter this Lease but each and every agreement, term, covenant, and condition hereof shall continue in full force and effect with respect to any other then existing or subsequent Default thereof. Notwithstanding any termination of this Lease, the same shall continue in force and effect as to any provisions which require observance or performance by Landlord or Tenant subsequent to such termination.

(d) Nothing contained in this Section 14.2 shall limit or prejudice the right of Landlord to prove and obtain as liquidated damages in any bankruptcy, insolvency, receivership, reorganization, or dissolution proceeding an amount equal to the maximum allowed by any statute or rule of law governing such a proceeding and in effect at the time when such damages are to be proved, whether or not such amount be greater, equal to, or less than the amounts recoverable, either as damages or rent, referred to in any of the preceding provisions of this Article. Notwithstanding anything contained in this Article to the contrary, any such proceeding or action involving bankruptcy, insolvency, reorganization, arrangement, assignment for the benefit of creditors, or appointment of a receiver or trustee, as set forth above, shall be considered to be an Event of Default only when such proceeding, action, or remedy shall be taken or brought by or against the then holder of the leasehold estate under this Lease.

(e) Pursue any other remedy now or hereafter available to Landlord under the laws or judicial decisions of the state wherein the Premises are located.

(f) The expiration or termination of this Lease and/or the termination of Tenant's right to possession shall not relieve Tenant from liability under any indemnity provisions of this Lease as to matters occurring or accruing during the Term or by reason of Tenant's occupancy of the Premises.

14.3 <u>Inducement Recapture in Event of Default</u>. Any agreement by Landlord for free or abated rent or other charges applicable to the Premises, or for the giving or paying by Landlord of any cash or other bonus, inducement or consideration for Tenant's entering into this Lease, including but not limited to, the cost of Landlord's Work set forth in the Approved Cost Statement, the Allowance, all brokerage commissions, and any other credit, including the Base Rent abatement as provided in Section 1.11, or offset, all of which concessions are hereinafter referred to as "<u>Inducement Provisions</u>" shall be deemed conditioned upon Tenant's full and faithful performance of all of the terms, covenants and conditions of this Lease to be performed or observed by Tenant during the term hereof as the same may be extended upon the occurrence of a Default (as defined in Section 14.1) of this Lease by Tenant, any such Inducement Provision shall automatically be deemed deleted from this Lease and of no further force or effect, and any rent, other charge, bonus, inducement or consideration theretofore abated, given or paid by Landlord under such an Inducement Provision shall be immediately due and payable by Tenant to Landlord, and recoverable by Landlord, as Additional Rent due under this Lease, notwithstanding any subsequent cure of said Default by Tenant. The acceptance by Landlord of rent or the cure of the Default which initiated the operation of this Section 14.3 shall not be deemed a waiver by Landlord of the provisions of this Section 14.3 unless specifically so stated in writing by Landlord at the time of such acceptance.

14.4 <u>Late Charges</u>. Tenant hereby acknowledges that late payment by Tenant to Landlord of rent and other sums due hereunder will cause Landlord to incur costs not contemplated by this Lease, the exact amount of which will be extremely difficult to ascertain. Such costs include, but are not limited to, processing and accounting charges, and late charges which may be imposed upon Landlord by the terms of any ground lease, mortgage or deed of trust covering the Premises. Accordingly, if any installment of rent or other sum due from Tenant shall not be received by Landlord or Landlord's designee within five (5) days after such amount shall be due, then, without any requirement for notice to Tenant, Tenant shall pay to Landlord a late charge equal to five percent (5%) of such overdue amount. The parties hereby agree that such late charge represents a fair and reasonable estimate of the costs Landlord will incur by reason of late payment by Tenant. Acceptance of such late charge by Landlord shall in no event constitute a waiver of Tenant's Default with respect to such overdue amount, nor prevent Landlord from exercising any of the other rights and remedies granted hereunder. In the event that a late charge is payable hereunder, whether or not collected for three (3) consecutive monthly installments of Base Rent, then notwithstanding Section 4.1 or any other provision of this Lease to the contrary, Base Rent shall, at Landlord's option, become due and payable quarterly in advance.

14.5 Landlord's Lien. Landlord shall have at all times a valid lien and security interest for all rentals and other sums of money becoming due hereunder from Tenant, upon and in all goods, wares, equipment, fixtures, furniture, and other personal property of Tenant situated on the premises, and such property shall not be removed therefrom without the consent of Landlord; provided, however, the foregoing shall not preclude Tenant from selling its merchandise in the ordinary course of business. Upon the occurrence of an Event of Default by Tenant, Landlord may, in addition to any other remedies provided herein or by law, enter upon the Premises and take possession of any and all goods, wares, equipment, fixtures, furniture, and other personal property of Tenant situated on the Premises without liability for trespass or conversion, and sell the same with or without notice at public or private sale, with or without having such property at the sale, at which Landlord or his assigns may purchase, and apply the proceeds thereof less any and all expenses connected with the taking of possession and sale of the property, as a credit against any sums due by Tenant to Landlord. Any surplus shall be paid to Tenant, and Tenant agrees to pay any deficiency forthwith. Alternatively, the lien and security interest hereby granted may be foreclosed in the manner and form provided by law for foreclosure of security interests (and Landlord shall have all the rights of a secured party under Colorado law), chattel mortgages or in any other form provided by law. The statutory lien for rent is not hereby waived, the express contractual lien herein granted being in addition and supplementary thereto. Tenant agrees to the filing of a UCC-1 Financing Statement in the form of **Exhibit G** attached hereto, and agrees to execute and deliver to Landlord such other documents as may be required to perfect Landlord's security interest hereunder. To evidence and perfect Landlord's security interest, this Lease shall be considered a security agreement. Anything herein to the contrary notwithstanding, purchase money financing of Tenant's removable trade fixtures, inventory and equipment shall not be a Default under this Section 14.5

14.6 Default by Landlord. Landlord shall not be deemed in default of this Lease unless Landlord fails within a reasonable time to perform an obligation required to be performed by Landlord. For purposes of this Section 14.6, a reasonable time shall in no event be less than thirty (30) days after receipt by Landlord, and by any Lender(s) whose name and address shall have been furnished to Tenant in writing for such purpose, of written notice specifying wherein such obligation of Landlord has not been performed; provided, however, that if the nature of Landlord's obligation is such that more than thirty (30) days after such notice are reasonably required for its performance, then Landlord shall not be in breach of this Lease if performance is commenced within such thirty (30) day period and thereafter diligently pursued to completion.

15. CONDEMNATION. If the Premises or any portion thereof are taken under the power of eminent domain or sold under the threat of the exercise of said power (all of which are herein called "condemnation"), this Lease shall terminate as to the part so taken as of the date the condemning authority takes title or possession whichever first occurs. If more than ten percent (10%) of the floor area of the Premises or more than twenty-five percent (25%) of the portion of the Common Areas designated for Tenant Parking is taken by condemnation, Tenant may, at Tenant's option, to be exercised in writing within ten (10) days after Landlord shall have given Tenant written notice of such taking (or in the absence of such notice, within ten (10) days after the condemning authority shall have taken possession) terminate this Lease as of the date the condemning authority takes such possession. If Tenant does not terminate this Lease in accordance with the foregoing, this Lease shall remain in full force and effect as to the portion of the Premises remaining, except that the Base Rent shall be reduced in the same proportion as the rentable floor area of the Premises taken bears to the total rentable floor area of the Premises. No reduction of Base Rent shall occur if the condemnation does not apply to any portion of the Premises. Any award for the taking of all or any part of the Premises under the power of eminent domain or any payment made under threat of the exercise of such power shall be the property of Landlord, whether such award shall be made as compensation for diminution of value of the leasehold or for the taking of the fee, or as severance damages; provided, however, that Tenant shall be entitled to any compensation, separately awarded to Tenant for Tenant's relocation expenses and loss of Tenant's Trade Fixtures.

16. BROKERS. Tenant and Landlord each represent and warrant to the other that: (i) it has had no dealings with any person, firm, broker or finder other than Todd Witty of CBRE, Inc. (collectively and individually, "Landlord's Broker") who acted as Landlord's agent in connection with the negotiation of this Lease and/or the consummation of the transaction contemplated hereby and Tanner Cole of Blue Picket Realty ("Tenant's Broker") who acted as Tenant's agent in connection with the negotiation of this Lease and/or the consummation of the transaction contemplated by this Lease; and (ii) no broker or other person, firm or entity other than said named Landlord's Broker and Tenant's Broker is entitled to any commission or finder's fee in connection with said transaction. Tenant and Landlord do each agree to indemnify, protect, defend and hold the other harmless from and against liability for compensation or charges which may be claimed by any such unnamed broker, finder or other similar party by reason of any dealings or actions of the indemnifying party, including any costs, expenses, and/or reasonable attorneys' fees reasonably incurred with respect thereto. Landlord shall pay Landlord's Broker and Tenant's Broker commissions pursuant to separate agreement(s).

17. STATEMENTS.

17.1 Estoppel. Tenant shall at its sole cost and expense, within ten (10) days after written notice from Landlord, execute, acknowledge, and deliver to Landlord a statement in writing, in the form attached hereto as **Exhibit H** (the "Tenancy Statement"), certifying that this Lease is unmodified and in full force and effect (or, if there have been modifications, that the same is in full force and effect as modified and stating the modifications), that there have been no defaults thereunder by Landlord or Tenant (or, if there have been defaults, setting forth the nature thereof), the date to which the rent and other charges have been paid in advance, if any, and such other information as the requesting party may request. It is intended that any such statement delivered pursuant to this Section may be relied upon by any prospective purchaser of all or any portion of Landlord's interest herein or any holder of any mortgage or deed of trust encumbering the Building Complex. Tenant's failure to deliver such statement within such time shall be conclusive upon Tenant that: (i) the Lease is in full force and effect, without modification except as may be represented by Landlord; (ii) there are no uncured defaults in Landlord's performance and (iii) not more than one month's rent has been paid in advance. Further, upon request, Tenant will supply Landlord a corporate, limited liability company, or partnership resolution, as the case may be, certifying that the party signing said statement of Tenant is properly authorized to do so.

17.2 Financial Statement. If Landlord desires to finance, refinance, or sell the Premises or the Building, or any part thereof, Tenant and all Guarantors shall deliver to any potential lender or purchaser designated by Landlord such financial statements of Tenant and such Guarantors as may be reasonably required by such potential lender or purchaser, including but not limited to Tenant's financial statements for the past three (3) years. All such financial statements shall be received and held by Landlord and such potential lender or purchaser in confidence and shall be used only for the purposes set forth in this Lease.

18. LANDLORD'S LIABILITY. In the event of a transfer of Landlord's title or interest in the Premises or in this Lease, Landlord shall deliver to the transferee or assignee (in cash or by credit) any unused Security Deposit held by Landlord at the time of such transfer or assignment. Upon such transfer or assignment and delivery of the Security Deposit, the prior Landlord shall be relieved of all liability with respect to the obligations and/or covenants under this Lease thereafter to be performed by the Landlord. Subject to the foregoing, the obligations and/or covenants in this Lease to be performed by the Landlord shall, at the time in question, be binding only upon the Landlord who is the owner or owners of the fee title to the Premises.

19. SEVERABILITY. The invalidity of any provision of this Lease, as determined by a court of competent jurisdiction, shall in no way affect the validity of any other provision of this Lease.

20. INTEREST ON PAST-DUE OBLIGATIONS. Any monetary payment due Landlord hereunder, other than late charges, not received by Landlord within ten (10) days following the date on which it was due, shall bear interest from the date due at the prime rate charged by the largest state chartered bank in the state in which the Premises are located plus four percent (4%) per annum compounded monthly, but not exceeding the maximum rate allowed by law, in addition to the potential late charge provided for in Section 14.4.

21. TIME OF ESSENCE. Time is of the essence with respect to the performance of all obligations to be performed or observed by the parties under this Lease.

22. NO PRIOR OR OTHER AGREEMENTS. This Lease contains all agreements between the Parties with respect to any matter mentioned herein, and no other prior or contemporaneous agreement or understanding shall be effective.

23. NOTICE REQUIREMENTS. Any notice which may be required to be given under this Lease shall be delivered in person or sent by registered or certified mail, postage prepaid, or delivered by a national overnight delivery service, and shall be addressed to the address set forth in Sections 1.1 and 1.2, or to either party at such other address as shall be designated by written notice to the other party. All notices or demands required to be given to either party shall be in writing and shall be deemed duly served when delivered personally, or five (5) days following deposit in the U.S. mail, postage prepaid, certified or registered, return receipt requested, addressed to the party, or the business day after delivery to an overnight delivery service, such as United Parcel Service or Federal Express.

24. WAIVERS. No waiver by Landlord of Tenant's Default of any term, covenant or condition of this Lease shall be deemed a waiver of any other term, covenant, or condition hereof or of any subsequent Default by Tenant of the same of any other term, covenant or condition hereof. Landlord's consent to or approval of any such act shall not be deemed to render unnecessary the obtaining of Landlord's consent to or approval or any subsequent or similar act by Tenant or be construed as the basis of an estoppel to enforce the provision or provisions of this Lease requiring such consent. Regardless of Landlord's knowledge of a Default at the time of accepting rent, the acceptance of rent by Landlord shall not be a waiver of any Default by Landlord of any provision hereof. Any payment given Landlord by Tenant may be accepted by Landlord on account of monies or damages due Landlord, notwithstanding any qualifying statements or conditions made by Tenant in connection therewith, which such statements and/or conditions shall be of no force or effect whatsoever unless specifically agreed to in writing by Landlord at or before the time of deposit of such payment.

25. **RECORDING.** Tenant shall not record this Lease or a memorandum of this Lease. In the event that Tenant violates this provision, this Lease shall be void and of no further force and effect, at Landlord's option, except that Tenant shall be liable to Landlord as liquidated damages, in the amount of the remaining Rent to be paid under this Lease.

26. **HOLDOVER.** Tenant has no right to retain possession of the Premises or any part thereof beyond the Expiration Date or earlier termination of this Lease. In the event that Tenant holds over in violation of this Article 26, such holding over in itself shall not constitute a renewal or extension of this Lease, but in such event it will be deemed to be occupying the Premises as a tenant from month-to-month, subject to all the covenants of this Lease to the extent that they can be applied to a month-to-month tenancy, except that the Base Rent payable from and after the time of the expiration or earlier termination of this Lease shall be increased to one-hundred seventy-five percent (175%) of the Base Rent applicable during the month immediately preceding such expiration or earlier termination. Nothing contained herein shall be construed as a consent by Landlord to any holding over by Tenant.

27. **CUMULATIVE REMEDIES.** No remedy or election under this Lease shall be deemed exclusive but shall, wherever possible, be cumulative with all other remedies at law or in equity.

28. **COVENANTS AND CONDITIONS.** All provisions of this Lease to be observed or performed by Tenant are both covenants and conditions.

29. **BINDING EFFECT; CHOICE OF LAW; CHOICE OF FORUM.** This Lease shall be binding upon the parties, their personal representatives, successors and assigns and be governed by the laws of the State of Colorado. Any litigation between the parties concerning this Lease shall be initiated in the county in which the Premises are located. Landlord and Tenant each, knowingly and voluntarily, with and upon the advice of competent counsel, submits to personal jurisdiction in the State of Colorado and agrees that it will not bring any action, suit or proceeding in any other forum.

30. **SUBORDINATION; ATTORNMENT; NON-DISTURBANCE.**

30.1 Subordination. Subjection to Section 30.3, this Lease and any Options shall be subject and subordinate to any ground lease or the lien of any mortgage, deed of trust, or other hypothecation or security device (collectively, "Security Device") now or hereafter placed by Landlord upon the real property of which the Premises are a part, to the lien of any and all advances made on the security thereof, and to the lien of all renewals, modifications, consolidations, replacements and extensions thereof. Tenant agrees that the Lender holding any such Security Device shall have no duty, liability or obligation to perform any of the obligations of Landlord under this Lease, but that in the event of Landlord's default with respect to any such obligation, Tenant will give any Lender whose name and address have been furnished Tenant in writing for such purpose notice of Landlord's default pursuant to Section 14.6. If any Lender shall elect to have this Lease and/or any Option granted hereby be superior to the lien of its Security Device and shall give written notice thereof to Tenant, this Lease shall be deemed prior to such Security Device, notwithstanding the relative dates of the documentation or recordation thereof.

30.2 Attornment. Subject to the non-disturbance provisions of Section 30.3, Tenant agrees to attorn to a Lender or any other party who acquires ownership of the Premises by reason of a foreclosure of a Security Device, and that in the event of such foreclosure, such new owner shall not: (i) be liable for any act or omission of any prior Landlord or with respect to events occurring prior to acquisition of ownership; (ii) be subject to any offsets or defenses which Tenant might have against any prior Landlord; or (iii) be bound by prepayment of more than one month's rent.

30.3 Non-Disturbance. With respect to Security Devices entered into by Landlord after the execution of this Lease, Tenant's subordination of this Lease shall be subject to receiving assurance ("non-disturbance agreement") from the Lender that Tenant's possession and this Lease, including any options to extend the term hereof, will not be disturbed so long as there is no uncured Event of Default and Tenant attorns to the record owner of the Premises.

30.4 Self-Executing. The agreements contained in this Article 30 shall be effective without the execution of any further documents; provided, however, that upon written request from Landlord or a Lender in connection with a sale, financing or refinancing of the Premises, Tenant and Landlord shall execute such further writings as may be reasonably required to separately document any such subordination or non-subordination, attornment and/or non-disturbance agreement as is provided for herein.

30.5 Lender Deposit Obligation. Tenant agrees that any Lender or any other party who acquires ownership of the Premises shall have no obligation to return any security deposit not actually received by the Lender or the party who acquires ownership of the Premises.

31. ATTORNEYS' FEES. If any party brings an action or proceeding to enforce the terms hereof or declare rights hereunder, the Prevailing Party (as hereafter defined) in any such proceeding or action shall be entitled to reasonable attorneys' fees. Such fees may be awarded in the same suit or recovered in a separate suit, whether or not such action or proceeding is pursued to decision or judgment. The term "Prevailing Party" shall include, without limitation, a party who substantially obtains or defeats the relief sought, as the case may be, whether by compromise, settlement, judgment or the abandonment by the other party of its claim or defense. The attorneys' fee award shall not be computed in accordance with any court fee schedule, but shall be such as to fully reimburse all attorneys' fees reasonably incurred. Landlord shall be entitled to attorneys' fees, costs and expenses incurred in preparation and service of notices of an Event of Default and consultations in connection therewith, whether or not a legal action is subsequently commenced in connection with such Event of Default.

32. RIGHT OF ENTRY. Landlord and Landlord's agents shall have the right to enter the Premises at any time, in the case of an emergency, and otherwise upon at least twenty-four (24) hours' prior written notice (notwithstanding anything to the contrary, email sent to a designated representative of Tenant shall be sufficient for said purpose), for the purpose of showing the same to prospective purchasers, Lender(s) or prospective lenders, or during the last three hundred (300) days of the Term, tenants, and making such alterations, repairs, improvements or additions to the Premises or to the Building, as Landlord may reasonably deem necessary. Landlord may at any time place on or about the Premises or Building any ordinary "For Sale" signs, and Landlord may at any time during the last three hundred (300) days of the Term place on or about the Premises any ordinary "For Lease" signs. All such activities of Landlord shall be without abatement of rent or liability to Tenant.

33. AUCTIONS. Tenant shall not conduct, nor permit to be conducted, either voluntarily or involuntarily, any auction upon the Premises without first having obtained Landlord's prior written consent. Notwithstanding anything to the contrary in this Lease, Landlord shall not be obligated to exercise any standard of reasonableness in determining whether to grant such consent.

34. SIGNAGE. Tenant shall not place any sign upon the exterior of the Premises or the Building, except that Tenant may, with Landlord's prior written consent, install at its sole expense such signs on the exterior of the Building (but not on the roof), as are reasonably required to advertise Tenant's own business so long as such signs are in a location designated by Landlord and comply with Applicable Requirements and the signage criteria established for the Building Complex by Landlord. The installation of any sign on the Premises by or for Tenant shall be subject to the provisions of Article 8 (Maintenance, Repairs, Utility Installations, Trade Fixtures and Alterations). Unless otherwise expressly agreed herein, Landlord reserves all rights to the use of the roof of the Building, and the right to install advertising signs on the Building, including the roof, which do not unreasonably interfere with the conduct of Tenant's business; Landlord shall be entitled to all revenues from such advertising signs. Landlord's Sign Criteria is attached hereto as part of **Exhibit I**.

35. TERMINATION; MERGER. Unless specifically stated otherwise in writing by Landlord, the voluntary or other surrender of this Lease by Tenant, the mutual termination or cancellation hereof, or a termination hereof by Landlord for an Event of Default by Tenant, shall automatically terminate any sublease or lesser estate in the Premises; provided, however, Landlord shall, in the event of any such surrender, termination or cancellation, have the option to continue any one or all of any existing subtenancies. Landlord's failure within ten (10) days following any such event to make a written election to the contrary by written notice to the holder of any such lesser interest, shall constitute Landlord's election to have such event constitute the termination of such interest.

36. GUARANTOR.

36.1 Form of Guaranty. [Intentionally Omitted.]

36.2 Additional Obligations of Guarantor. [Intentionally Omitted.]

37. QUIET POSSESSION. Upon payment by Tenant of the rent for the Premises and the performance of all of the covenants, conditions and provisions on Tenant's part to be observed and performed under this Lease and subject to the provisions of this Lease, Tenant shall not be disturbed in its possession of the Premises for the entire Term by Landlord or any other person lawfully claiming by, through or under Landlord.

38. RULES AND REGULATIONS. Tenant agrees that it will abide by, and keep and observe all reasonable rules and regulations rules and regulations which Landlord may make from time to time for the management, safety, care, and cleanliness of the grounds, the parking and unloading of vehicles and the preservation of good order, as well as for the convenience of other occupants or Tenants of the Building and the Building Complex and their invitees.

39. SECURITY. Tenant hereby acknowledges that the rent payable to Landlord hereunder does not include the cost of guard service or other security measures, and that Landlord shall have no obligation whatsoever to provide same. Tenant assumes all responsibility for the protection of the Premises, Tenant, its agents and invitees and their property from the acts of third parties. Notwithstanding the foregoing, Landlord may elect to provide a concierge or security guard for more efficient operation of the Building Complex, and the cost of such security or concierge shall be included as a Common Area Operating Expense under Section 4.2. Landlord is not obligated to provide such services at any time or for any length of time. Tenant expressly acknowledges that Landlord has not represented to Tenant that the Building Complex is secure and Landlord shall not be responsible for the quality of any security services which may be provided hereunder or for damage or injury to Tenant, its agents, employees, invitees or others or its betterments contained in the Building Complex or the Premises due to the failure, action or inaction of such security guard personnel.

40. RESERVATIONS. Landlord reserves the right, from time to time, to grant, without the consent or joinder of Tenant, such easements, rights of way, utility raceways, and dedications that Landlord deems necessary, and to cause the recordation of parcel maps and restrictions, so long as such easements, rights of way, utility raceways, dedications, maps and restrictions do not unreasonably interfere with Tenant's use or occupancy of the Premises. Tenant agrees to sign any documents reasonably requested by Landlord to effectuate any such easement rights, dedication, map or restrictions.

41. AUTHORITY. If any party to this Lease is a corporation, trust, limited liability company, or general or limited partnership, each individual executing this Lease on behalf of such entity represents and warrants that he or she is duly authorized to execute and deliver this Lease on its behalf. If Tenant is a corporation, trust, limited liability company, or partnership, Tenant shall within thirty (30) days after request by Landlord, deliver to Landlord evidence satisfactory to Landlord of such authority.

42. CONFLICT. Any conflict between the printed provisions of this Lease and the typewritten or handwritten provisions shall be controlled by the printed provisions of this Lease.

43. OFFER. Preparation of this Lease by either Landlord or Tenant or Landlord's agent or Tenant's agent and submission of same to Tenant or Landlord shall not be deemed an offer to lease. This Lease is not binding until it is executed and delivered by all parties.

44. AMENDMENTS. This Lease may be modified only in writing, signed by the parties in interest at the time of the modification. The parties shall amend this Lease from time to time to reflect any adjustments that are made to the Base Rent or other rent payable under this Lease. As long as they do not materially change Tenant's obligations hereunder, Tenant agrees to make such reasonable non-monetary modifications to this Lease as may be reasonably required by any generally recognized commercial real estate lender in connection with the obtaining of normal financing or refinancing of the property of which the Premises are a part.

45. MULTIPLE PARTIES. Except as otherwise expressly provided in this Lease, if more than one person or entity is named in this Lease as either Landlord or Tenant, the obligations of such multiple parties shall be the joint and several responsibility of all persons or entities named in this Lease as such Landlord or Tenant.

46. RELOCATION OF PREMISES. Landlord shall have the right, at its sole option, to relocate Tenant and substitute for the Premises other space with the Building Complex. Landlord shall notify Tenant with sixty (60) days prior written notice of the date Tenant will need to be relocated into the new Premises. Substitute space shall contain at least as much square footage as Tenant's original Premises, which space thereafter shall be governed by the terms and conditions of the Lease. Such substitute Premises shall have similar building features and shall be improved with decorations and improvements at least equal in quantity and quality with Tenant original Premises. Said costs for decoration and improvements shall be at the sole expense of the Landlord. Decorations and improvements in such substitution Premises shall include, but not be limited to, moving expenses, sign relocation, door lettering and telephone relocation expenses.

47. TEMPERATURE. Tenant shall maintain the air temperature in its leased space warm enough to prevent the freezing of plumbing and sprinkler systems, if any. During the cooling season and heating season, temperatures inside the Premises shall be maintained at 70 to 73 degrees Fahrenheit.

48. CONFIDENTIALITY. All information contained in this Lease is confidential and shall not be divulged to anyone by Tenant or any of Tenant's agents without the express written consent of Landlord, except as otherwise specified in Articles 17 and 25 of this Lease or as otherwise required by law; provided, however, any obligation relating to the confidentiality of information hereunder shall not apply to any information which: (a) is already previously known to the Tenant without obligation or confidence; (b) is or becomes publicly disclosed without breach of this Lease; (c) is rightfully received from a third party without obligation of confidence; (d) is independently developed outside of this Lease by Tenant; and (e) is released for disclosure by the written consent of the Landlord. Disclosure of information shall not be precluded if such disclosure is: (i) in response to a valid order of a court or other governmental body of the United States or any political subdivision thereof; (ii) required by law; or (iii) necessary to establish rights under this Lease.

49. FORCE MAJEURE CLAUSE. Wherever there is provided in this Lease a time limitation for performance by either party, of any obligation, such time shall be extended to the extent that delay in compliance with such limitation is due to any labor dispute, strike, lockout, fire, acts of God, restrictive governmental laws or regulations issued undered a declared emergency, riots, insurrection, war or other casualty or events of a similar nature beyond its reasonable control. A party's financial inability to perform its obligations shall in no event constitute force majeure. Nothing in this Section 49 shall excuse or delay Tenant's obligation to pay any Rent or other charges due under this Lease.

50. WAIVER OF JURY TRIAL. LANDLORD AND TENANT, KNOWINGLY AND VOLUNTARILY, WITH AND UPON THE ADVICE OF COMPETENT COUNSEL, IRREVOCABLY WAIVES, RELINQUISHES AND FOREVER FORGOES THE RIGHT TO A TRIAL BY JURY IN ANY ACTION OR PROCEEDING BASED UPON, ARISING OUT OF, OR IN ANY WAY RELATING TO THIS LEASE OR ANY CONDUCT, ACT, OR OMISSION OF LANDLORD OR TENANT, OR THEIR DIRECTORS, OFFICERS, PARTNERS, MEMBERS, EMPLOYEES, OR AGENTS, WHETHER SOUNDING IN CONTRACT, TORT OR OTHERWISE.

[Rest of Page Intentionally Left Blank; Signatures to Follow on Next Page]

To evidence the parties' agreement to this Lease, they have executed and delivered it as of the date set forth in the preamble.

LANDLORD

WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company

By:______________________________
John A. Woodward, Manager

TENANT

TD INDUSTRIES, INC., a Texas corporation

DocuSigned by:
By: Tara Garcia
C5377AB14A86479...

Name: Tara Garcia

Title: Vice President - Multifamily

EXHIBITS

Exhibit A	Depiction of Premises
Exhibit A-1	Approved Plans and Specifications
Exhibit B	The Building and Building Complex
Exhibit C	[Intentionally Omitted.]
Exhibit D	[Intentionally Omitted.]
Exhibit E	Work Letter (and Exhibit "1" to Work Letter)
Exhibit F	Supplemental Agreement and Commencement Certificate
Exhibit G	UCC-1 Financing Statement
Exhibit H	Tenant's Estoppel Certificate
Exhibit I	Sign Criteria
Exhibit J	[Intentionally Omitted.]

EXHIBIT A
TO MULTI-TENANT NET LEASE

DEPICTION OF THE PREMISES

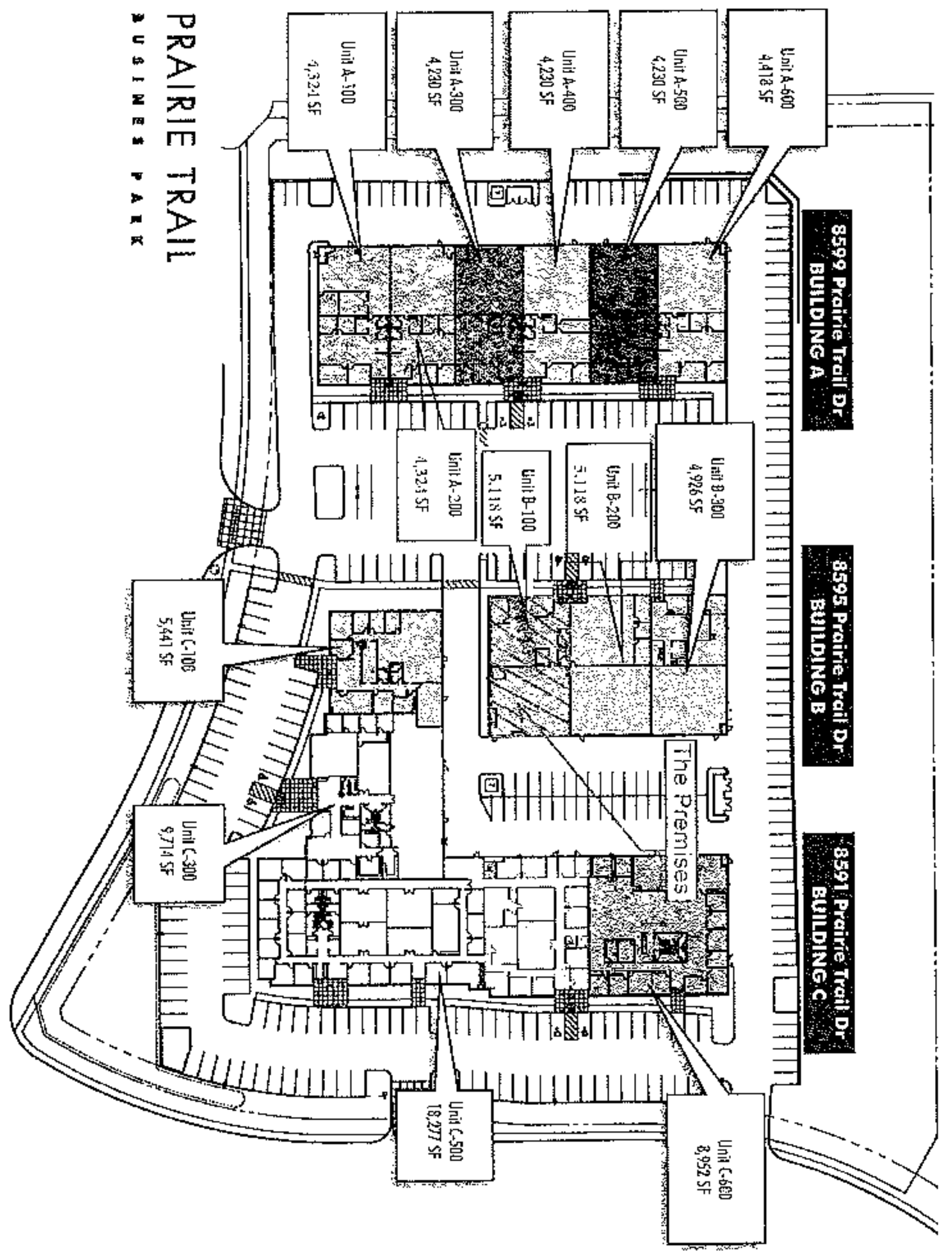

EXHIBIT A-1
TO MULTI-TENANT NET LEASE

APPROVED PLANS AND SPECIFICATIONS FROM THE WORK LETTER AND THE FINAL DEPICTION OF THE PREMISES

[N/A]

EXHIBIT B
TO MULTI-TENANT NET LEASE

THE BUILDING AND BUILDING COMPLEX

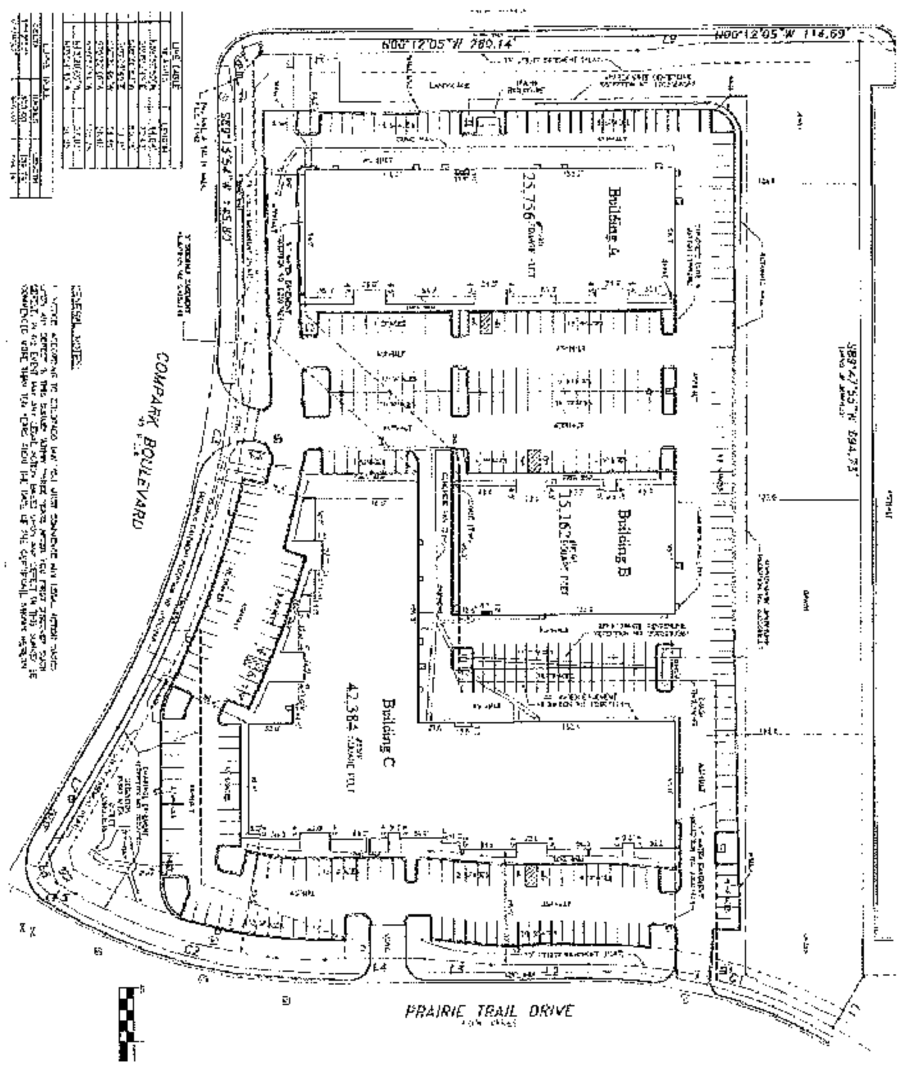

EXHIBIT C
TO MULTI-TENANT NET LEASE

[Intentionally Omitted.]

EXHIBIT D
TO MULTI-TENANT NET LEASE

[Intentionally Omitted.]

EXHIBIT E
TO MULTI-TENANT NET LEASE

WORK LETTER

July 13, 2021

Landlord: WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company

Tenant: TD INDUSTRIES, INC., a Texas corporation

Premises: 5,118 rentable square feet of Prairie Trail Business Park

Address: 8595 Prairie Trail Drive, Unit B-100, Englewood, CO 80112

Concurrently with this work letter ("Work Letter"), Tenant and Landlord have executed a Multi-Tenant Net Lease (the "Lease") covering the Premises. This Work Letter is attached to and made part of that Lease as **Exhibit E** and capitalized terms used in this Work Letter that are not defined here have the same meaning assigned to each in the Lease. In consideration of the execution of the Lease, Landlord and Tenant mutually agree as follows:

1. Tenant agrees to take the space in its "as is - where is" condition, except for Landlord's Work (defined below) and the provisions of Section 2.2 of the Lease. Landlord agrees to complete the following work in the Premises at Landlord's sole expense ("Landlord's Work"): (A) Replace existing carpet in the office area of the Premises with new carpet (Energy 7997 Modular, 1560 variable Layout: Brick) as reasonably determined by Landlord and Tenant and (B) Paint the walls in the office area of the Premises with new paint (Accent Walls: Sherwin Williams 6523- Denim and All other walls: Sherwin Williams 7008 Alabaster) that is reasonably selected by Landlord and Tenant.

2. Landlord shall complete Landlord's Work no later than the Commencement Date.

3. All work, construction, and improvements necessary besides Landlord's Work that is necessary to permit Tenant to commence its business in the Premises, including installation of Trade Fixtures, Utility Installations, equipment, and furnishings shall be completed by Tenant at Tenant's cost and expense (collectively "Tenant's Initial Work"). All permanent fixtures installed in the Premises by Tenant shall be deemed part of the Premises upon installation and the property of the Landlord, except for Tenant's Trade Fixtures explicitly designated in writing by Tenant to Landlord as such prior to commencement of Tenant's Work. Notwithstanding anything in this Work Letter to the contrary, Landlord and Tenant agree that Tenant's Initial Work will not be permitted or designed and that subparagraphs 3.A, 3.C, and 3.D of this Work Letter are inapplicable to Tenant's Initial Work. Tenant and Landlord acknowledge and agree that Landlord has provided Tenant with conceptual approval of the modifications to the Premises set forth in **Exhibit "2"** to this Work Letter, which shall be deemed to be Tenant's Work subject to all the terms and conditions of this Work Letter when Tenant elects to commence such work following the Commencement Date.

   A. At Tenant's request, Landlord may supply Tenant with a list of architects/designers who may be able to assist Tenant in preparing its plans and specifications. Tenant may contract with any architect/designer of its choice, including those whose names have been supplied by the Landlord. Services requested by Tenant in connection with design and drawing preparation shall be at Tenant's sole cost and expense. Landlord makes no representation or guarantee with respect to fees, services, schedules or other items to be provided by the architect/designer and shall in no way be responsible for such architect/designer's work product. Tenant's architect/ designer shall prepare plans and specifications for Tenant's Work to be completed in the Premises (the "Plans and Specifications"). All Plans and Specifications shall be subject to review and approval by Landlord, Landlord's architect and Landlord's engineer prior to commencement of Tenant's Work, which approval will not be unreasonably withheld, conditioned, or delayed. All costs of preparation, review and approval, including review and approval by Landlord, Landlord's architect, and/or Landlord's engineer, shall be borne by Tenant. Landlord shall, within ten (10) business days after receipt of the Plans and

Specifications by Landlord for its review and approval, submit to Tenant the Plans and Specifications with the required approvals noted thereon, or submit comments to Tenant setting forth changes to be made in the Plans and Specifications. If changes are required by Landlord, Tenant shall have the Plans and Specifications modified and resubmitted to Landlord for approval and such process shall be repeated until Landlord, Landlord's architect, and/or Landlord's engineer have approved the Plans and Specifications for the Premises (hereinafter referred to as "Approved Plans and Specifications"). The Approved Plans and Specifications will be inserted into the Lease as **Exhibit A-1**. Changes to the Approved Plans and Specifications shall be made only upon prior written approval of Landlord, which approval will not be unreasonably withheld, conditioned, or delayed, and shall be at Tenant's sole cost and expense.

B. Tenant shall contract directly for the Tenant's Work to be completed in accordance with the approved Plans and Specifications. Tenant's contractor shall bill Tenant and Tenant shall be solely responsible for paying all costs for Tenant's Work as set forth on the approved Plans and Specifications. Tenant and Tenant's contractor will be required to adhere to the requirements set forth in **Exhibit "1"** attached to this Work Letter in connection with performance of Tenant's Work and the contract between Tenant and Tenant's contractor shall incorporate all of the provisions of Exhibit "1." All Tenant's Work shall (i) be performed pursuant to written contracts with workmen and mechanics, which shall be acceptable to Landlord; (ii) comply with all reasonable restrictions and requirements as Landlord may impose with respect to Tenant's Work; (iii) conform to the standards of the Building Complex; (iv) be done in a safe and lawful manner in compliance with Applicable Laws, Applicable Requirements, Environmental Laws, and any other applicable governmental regulations and requirements; and (v) be done so as not to interfere with any other tenants in the Building Complex or Landlord's completion of the Landlord's Work in the Premises. Tenant shall cause such contractor to take all steps necessary to cooperate in the coordination of the performance of Tenant's Work with the work of Landlord or Landlord's contractors in the Premises or in the Building Complex, including, without limitation, exchanging information about and coordinating their respective schedules, attending coordination meetings, and cooperating in allowing and obtaining access to and availability of portions of the site for performance of Tenant's Work and the work of such other contractors.

C. Prior to the execution by Tenant of any contract with Tenant's contractor for completion of any contracted activities in the Premises, including Tenant's Work, that are not being performed by a contractor doing business with Landlord directly for the completion of Landlord's Work, Tenant shall submit to Landlord evidence of Tenant's ability to pay for such contracted work as Landlord, in its reasonable discretion, may require based upon the estimated cost of such work, which requirement may be without limitation, a payment bond for the benefit of Landlord, a letter of credit or cash escrow. Tenant may not commence any work in the Premises without Landlord's approval of Tenant's financial arrangements for payment of such work.

D. Tenant and Tenant's contractor shall indemnify Landlord from any mechanic's or materialman's lien against Landlord's interest in the Building Complex or Premises to the extent arising from the performance of Tenant's Work. If a lien for Tenant's Work is filed, Tenant or Tenant's contractor shall, at Landlord's option, remove the lien by paying it in full, furnish Landlord a bond sufficient to discharge the lien or deposit in an escrow approved by Landlord 150% of the amount of such lien or cause the lien to be released by posting a bond with a court of competent jurisdiction pursuant to applicable statute. In the event Tenant or Tenant's contractor shall fail to remove such lien, provide a bond or cash escrow no later than ten (10) days after delivery of notice thereof from Landlord, Tenant shall immediately be in Default under the Lease without the necessity of further notice from Landlord and Landlord shall be entitled to take such action at law, in equity or under the Lease as Landlord deems appropriate and Tenant shall be responsible for all expenses Landlord may incur in discharging any lien including all costs and reasonable attorneys' fees incurred by Landlord in settling, defending against, appealing or in any manner dealing with such lien.

4. The Commencement Date, Tenant's rental obligations, and all other obligations under the Lease will not be delayed or extended by any Tenant Delay, as defined below. The term

"Tenant Delay" shall mean any delay: (i) in the finalization or approval of the Approved Plans and Specifications caused by Tenant, its agents or employees; (ii) caused by modifications, revisions, and changes to the Approved Plans and Specifications requested by Tenant, its agents or employees; (iii) in the delivery, installation, or completion of any items specified by Tenant to the extent that such items require ordering or work deadlines inconsistent with the scheduled Commencement Date; (iv) interference with Landlord's Work caused by the performance of Tenant's Work; or (v) of any other kind or nature in completion of Tenant's Work caused by Tenant, its agents or employees.

5. Landlord agrees to pay Tenant for N/A of Tenant's Work pursuant to the Approved Plans and Specifications, up to a maximum amount of $N/A, representing $N/A per rentable square foot of the Premises (the "Allowance"), with such costs including, but not limited to, "soft" construction costs like architecture and engineering fees, "hard" construction costs including labor and materials, and permitting fees; provided however, that the Allowance may not be used to pay any rental owing under the Lease or the costs of Tenant's Trade Fixtures, furniture, or low-voltage cabling. For the avoidance of doubt, Landlord's maximum financial obligation with respect to Landlord's Work and Tenant's Work shall not exceed the Allowance under any circumstance. The Allowance shall be payable as follows:

A. [Intentionally Omitted.]

B. Any cost of Tenant's Work in excess of the Allowance shall be paid by Tenant as and when due. Subject to reimbursement from the Allowance pursuant to this Work Letter, Tenant shall pay all costs attributable to design and construction of Tenant's Work pursuant to the Approved Plans and Specifications including, but not limited to, services, fees and expenses of Tenant's architect or engineer, fees and expenses of Landlord's architect or engineers, costs of permits and licenses required for completion of Tenant's Work, labor, material, fees, and expenses of Tenant's contractor(s) in completing Tenant's Work.

C. The Allowance shall be payable from Landlord to Tenant no later than thirty (30) calendar days after, Tenant submits to Landlord (i) an affidavit (or contractor statement) that all bills for materials, design services, labor, and any equipment and other indebtedness connected with Tenant's Work have been paid in full or otherwise satisfied, including lien waivers from subcontractors that are reasonably acceptable to Landlord; (ii) the certificate by Tenant's architect that the work is complete (if required by Landlord in its sole subjective discretion); (iii) all certificates necessary for occupancy of the Premises issued by the appropriate governmental authority permitting use of the Premises in accordance with the Approved Plans and Specifications (i.e. Certificate of Occupancy); and (iv) invoices and other applicable data (in reasonably detailed form) establishing the final cost of Tenant's Work and confirming the payment or satisfaction of all Tenant's construction obligations such as receipts, releases and waivers of liens arising out of Tenant's Work in such form as may be reasonably designated by Landlord. In the absence of an Allowance, Tenant shall still provide Landlord with the documentation set forth in items (i) through (iv) of the preceding sentence for its files.

D. [Intentionally Omitted.]

E. [Intentionally Omitted.]

[Rest of Page Intentionally Left Blank; Signatures Follow on Next Page]

To evidence the parties' agreement to this Work Letter, they have executed and delivered it concurrently with and as of the date of the Lease.

LANDLORD

WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company

By:______________________________
John A. Woodward, Manager

TENANT

TD INDUSTRIES, INC., a Texas corporation

By: DocuSigned by: Tara Garcia C5377AB14A88479...

Name: Tara Garcia

Title: Vice President - Multifamily

EXHIBIT "1" TO WORK LETTER

PROCEDURE AND SCHEDULES FOR COMPLETION OF TENANT WORK BY TENANT

Tenant and Tenant's Work contractors and the contracts between Tenant and Tenant's contractors, to be entered into in connection with the performance of Tenant's Work, shall conform to the following rules, regulations, and requirements, which shall be incorporated into such contracts. In the event of any conflict between any other terms or provisions of Tenant's contracts with Tenant's contractors for the performance of Tenant's Work and the terms and provisions set forth below, the terms and provisions set forth below shall control.

1. <u>Commencement of Construction</u>

Tenant shall start construction of Tenant's Work in the Premises not later than <u>three</u> (<u>3</u>) days from either of the following dates whichever shall be the later to occur and shall carry such construction to completion with all due diligence:

A. ten (10) days from issuance of a building permit (if applicable), and

B. the Lease Commencement Date.

2. <u>General Requirements</u>

A. Tenant shall submit to Landlord, in writing, at least ten (10) days prior to the commencement of construction, the following information:

(i) The names and addresses of the general, mechanical and electrical contractors Tenant intends to engage in the construction of Tenant's Work and copies of proposed contracts executed by Tenant (the "Tenant Finish Contract(s)". (The term "Contractor" as used hereinafter shall mean Tenant's general contractor or, if Tenant does not use a general contractor, then all contractors with whom Tenant contracts directly for Tenant's Work. The term "Subcontractors" shall mean and refer to all entities contracting with the Contractor to complete Tenant's Work.)

(ii) A schedule setting forth the commencement date of construction of Tenant's Work and the date of completion of construction of Tenant's Work, fixturing work, and the date of projected opening.

(iii) Copies of performance and/or labor and material bonds, if so required by Tenant from the Contractor and Subcontractors.

(iv) Itemized statement of estimated construction costs, including architectural, engineering and contracting fees.

(v) Evidence of insurance as called for herein. Tenant shall secure, pay for and maintain, or cause its contractor(s) to secure, pay for and maintain, during the continuance of construction and fixturing work within Tenant's Premises, all of the insurance policies required and in the amounts as set forth herein. Tenant shall not permit, and Tenant's Tenant Finish Contracts shall prohibit its Contractor to commence any work until all required insurance has been obtained and certified copies of policies have been delivered to Landlord.

B. Insurance: Tenant shall secure, pay for and maintain, or cause its Contractor to secure, pay for and maintain during the continuance of construction and fixturing work within Tenant's Premises, the following insurance and in the amounts as set forth below:

(i) Tenant's Contractor's and Subcontractor's Required Minimum Coverages and Limits of Liability:

(a) Workers' Compensation, Employer's Liability Insurance with limits of not less than $100,000.00 and as required by state law and any insurance required for any employee by state law and any insurance required by any Employee Benefit Acts or other statutes applicable where the work is to be performed as will protect the Contractor and Subcontractors from any and all liability under the aforementioned acts.

(b) Comprehensive General Liability Insurance (including Contractor's Protective Liability) in an amount not less than $500,000.00 per person and $1,000,000.00 per occurrence whether involving personal injury liability (or death resulting therefrom) or property damage liability or a combination thereof with a minimum aggregate limit of $2,000,000.00. Such insurance shall provide for explosion and collapse coverage, if applicable, and contractual liability coverage and shall insure the Contractor and/or Subcontractors against any and all claims for personal injury, including death resulting therefrom and damage to the property of others and arising from his operations under the Contract and whether such operations are performed by the Contractor, Subcontractors or any of their Subcontractors, or by any one directly or indirectly employed by any of them.

(c) Comprehensive Automobile Liability Insurance, including the ownership, maintenance and operation of any automotive equipment owned, hired, and non-owned in the following minimum amounts:

(i) Bodily injury/death, each person - $500,000.00

(ii) Bodily injury/death, each occurrence - $1,000,000.00

(iii) Property damage liability - $250,000.00

Such insurance shall insure the Contractor and/or Subcontractors against any and all claims for bodily injury, including death resulting therefrom and damage to the property of others arising from his operations under the Contract and whether such operations are performed by the Contractor, Subcontractors, or any one directly or indirectly employed by any of them.

(ii) Tenant's Protective Liability Insurance

Tenant or Tenant's Contractor shall provide Owner's Protective Liability Insurance as will insure against any and all liability (or death resulting therefrom) and property damage liability of others for a combination thereof which may arise from work in the completion of the Premises, and any other liability for damages which the Contractor and/or Subcontractor are required to insure under any provisions herein. Such coverage must include the following endorsements: CG 20 10 – (Owners, Lessees, or Contractors) Additional Insured Ongoing Operations, CG 20 37 – (Owners, Lessees, or Contractors) Additional Insured Completed Operations, and CG 25 03 – (Designated Construction Projects(s) General Aggregate Limit).

Landlord shall be named as additional insured. Said insurance shall be provided in minimum amounts as follows:

(a) Bodily injury/death each person - $500,000.00

(b) Bodily injury/death each occurrence - $1,000,000.00

(c) Property Damage each occurrence - $1,000,000.00

(d) Property Damage, Aggregate - $2,000,000.00

(iii) Tenant's Builder's Risk Insurance (for Tenant's Work cumulatively costing in excess of $100,000.00)

Tenant shall provide a Completed Value Form "All Physical Loss" Builder's

Risk coverage on its work in the Premises as it relates to the Building within which the Premises is located, naming the interests of the Landlord, the Contractor and all Subcontractors, as their respective interest may appear, within a radius of 100 feet of the Premises.

(iv) Insurance policies shall name Landlord as additional insured. Certificates of Insurance shall provide that no change or cancellation of such insurance coverage shall be undertaken without thirty (30) days' written notice to Landlord. Tenant's Contractor shall deliver the necessary insurance certificates to Landlord prior to commencing work.

C. As provided above, Tenant shall notify Landlord of the names of the proposed Tenant's Work general, mechanical and electrical contractors and such contractors shall be subject to prior written approval of Landlord which approval shall not be unreasonably withheld. All Contractors and Subcontractors engaged by Tenant shall be bondable, licensed contractors, possessing good labor relations, capable of performing quality workmanship and working in harmony with Landlord's general contractor and other contractors on the job. All work shall be coordinated with the general project work. Landlord shall have the right to require Tenant's Contractors and Subcontractors to provide payment and performance bonds for any or all Tenant's Work, such bonds to be provided at Tenant's sole cost and expense. Any bond shall be requested and provided prior to the commencement of Tenant's Work.

D. Tenant's Contractor and Tenant's Work construction shall comply in all respects with applicable federal, state, county and/or local statutes, ordinance, regulations, laws and codes. All required building and other permits in connection with the construction and completion of the Premises shall be obtained and paid for by Tenant.

E. All Tenant's Work contracts shall be in writing, and no Tenant's Work shall be done except pursuant to such contracts. All Tenant's Work contracts shall be subject to Landlord's prior written consent, which shall not be unreasonably withheld, conditioned or delayed. Any approved Tenant's Work contracts (hereinafter referred to collectively as the "Tenant's Work Contract") shall not be amended or modified without approval by Landlord. The Tenant's Work Contract shall conform with the provisions of the Lease, including all provisions herein, and shall obligate the Tenant's Contractor to complete Tenant's Work in accordance with the schedule referred to in Paragraph 1.B above.

F. In order to maintain Landlord's warranties and guaranties for the mechanical, electrical, safety and fire protection systems, all Tenant's Work affecting these systems shall be completed by Landlord's shell subcontractors performing the respective shell work items; provided, however, at Landlord's sole option, Landlord shall have the right to allow other subcontractors to perform work on special systems which may require connection into the foregoing systems. Other work which Landlord shall have the right to have performed on behalf of and for the benefit of Tenant shall be limited to work which Landlord deems necessary to be done on an emergency basis and which pertains to structural components, the general utility systems for the project, and the erection of temporary barricades and temporary signs, per standard project details and criteria, during construction and/or the period following the opening of the center for business.

G. Tenant's Work shall be subject to the inspection and approval of Landlord, Landlord's Architect and general contractor. Such inspection shall be for Landlord's sole benefit and shall in no event be construed as any benefit to, nor may Tenant rely thereon. All work performed and material and equipment installed shall be first quality, new materials and equipment and meet or exceed those standards or qualities (as judged by Architect) presently performed or contemplated at the project. Landlord shall have the right at any time during the performance of Tenant's Work or thereafter to require replacement and reconstruction at Tenant's expense of Tenant's Work not conforming to these standards or to the Tenant's Work Contract.

H. Tenant shall apply and pay for all utility meters except where metered service is provided by Landlord or public service agency.

I. The Tenant's Work Contract shall include a statement requiring the Contractor and all subcontractors, laborers, and materialmen to execute a lien waver for any interim and final payments. A copy of the executed waiver or notice of refusal is to be immediately forwarded to the Landlord.

J. Prior to commencement of any Tenant's Work in the Premises, Tenant shall obtain from Landlord the Landlord's notice which provides that Landlord is not responsible for the payment of such work and setting forth such other information as landlord may deem necessary. Tenant shall post copies of the notice in the Premises in locations which will be visible by parties performing any work on the Premises and Tenant shall provide evidence of posting, including a photograph and a notarized statement confirming such posting. Tenant and Tenant's Contractor shall not remove, destruct, deface or otherwise modify the notice.

K. Tenant shall indemnify and hold harmless Landlord and representatives, agents and employees from and against all claims, damages, losses, and expenses, including, but not limited to, reasonable attorney's fees arising out of or resulting from the performance of Tenant's Work or Tenant's Contractor's performance of the Tenant Finish Contract which are: (a) caused in whole or in part by any negligence or omission of Tenant's Contractor, used by such Contractor, anyone directly or indirectly employed by any of them or anyone for whose acts any of them may be liable, regardless of whether or not such claim, loss, damage, or expense is caused in part by a party indemnified hereunder; and (b) attributable to bodily injury, sickness, disease or death, or the destruction of tangible personal property, including loss of use resulting from any of the foregoing acts and all Tenant Finish Contracts shall reflect this indemnity. In any and all claims against the Landlord or its representatives or any of their agents or employees or by an employee of Tenant's Contractor, any subcontractor, anyone directly or indirectly employed by any of them, or anyone for whose acts any of them may be liable, in the indemnification obligation under this Paragraph K shall not be limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for the Tenant's Contractor or any Subcontractor under the Workers Compensation Act, disability benefit acts, or other employee benefit acts.

L. In the event a Subcontractor of materialman files a mechanics' lien as a result of performing Tenant's Work pursuant to Tenant's Tenant Finish Contract then Tenant's Contractor shall indemnify the Tenant and Landlord from said lien and shall, when requested by the Tenant and/or Landlord, furnish Tenant and Landlord (as Landlord or Tenant may specify) either a bond sufficient to discharge the lien, deposit in an escrow approved by Landlord and Tenant a sum equal to 150% of the amount of such lien or obtain for the Landlord an endorsement through the Landlord's title insurance commitment or policy insuring against loss or damage resulting from such lien. Subject to any restrictions thereon posed by Landlord's Mortgagee on the Building, Tenant's Contractor shall have the right and opportunity, in cooperation with Landlord and Tenant, to contest the validity of any such mechanics' lien by such legal means as are available, including the right to prosecute any appeals which may be permitted by law so long as during the pendency of any contest or appeal, the Tenant's Contractor shall effectively stay or prevent any official or judicial sale of any of the real property or improvements comprising the building, upon execution of otherwise, and so long as the Tenant's contractor pays any final judgment entered with respect to any such mechanics' lien and thereafter procures, within a reasonable time, record satisfaction thereof. In the event the Tenant and Landlord shall be a party to any such contest or appeal, or any other action resulting from or arising out of the performance of the Tenant's Work by Tenant's Contractor (or any of its subcontractors, agents, or employees), Tenant's Contractor shall be responsible for all legal fees and other costs and expenses incurred by Landlord and Tenant in any such action. Landlord and Tenant shall have the right to obtain separate counsel of their choice at Tenant's Contractor's expense. In the event that Tenant's Contractor fails to provide a bond, cash escrow or title endorsement, or otherwise fails to fully satisfy and obtain release of any lien or claim in accordance with the provisions hereof, Tenant's contractor shall be obligated to refund Tenant or Landlord, as the case may be, all monies that the latter may pay in discharging any such lien including all costs and reasonable attorneys' fees incurred by Landlord or Tenant in settling, defending against, appealing or in any other manner dealing with any such lien.

M. Tenant shall agree to be responsible for, and to timely pay, all costs directly and indirectly related to Tenant's Work, including, without limitation any fees for architecture, engineering and administration as incurred by Landlord in relation to the Premises.

IN WITNESS WHEREOF, the parties have executed this Exhibit "1" to Work Letter concurrently with the execution of the Lease.

LANDLORD

WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company

By:____________________________
John A. Woodward, Manager

TENANT

TD INDUSTRIES, INC., a Texas corporation

By: DocuSigned by: Tara Garcia C5377AB14A88479...

Name: Tara Garcia

Title: Vice President - Multifamily

EXHIBIT "2" TO WORK LETTER

CONCEPTUAL TENANT'S WORK SUBSEQUENT TO THE COMMENCEMENT DATE

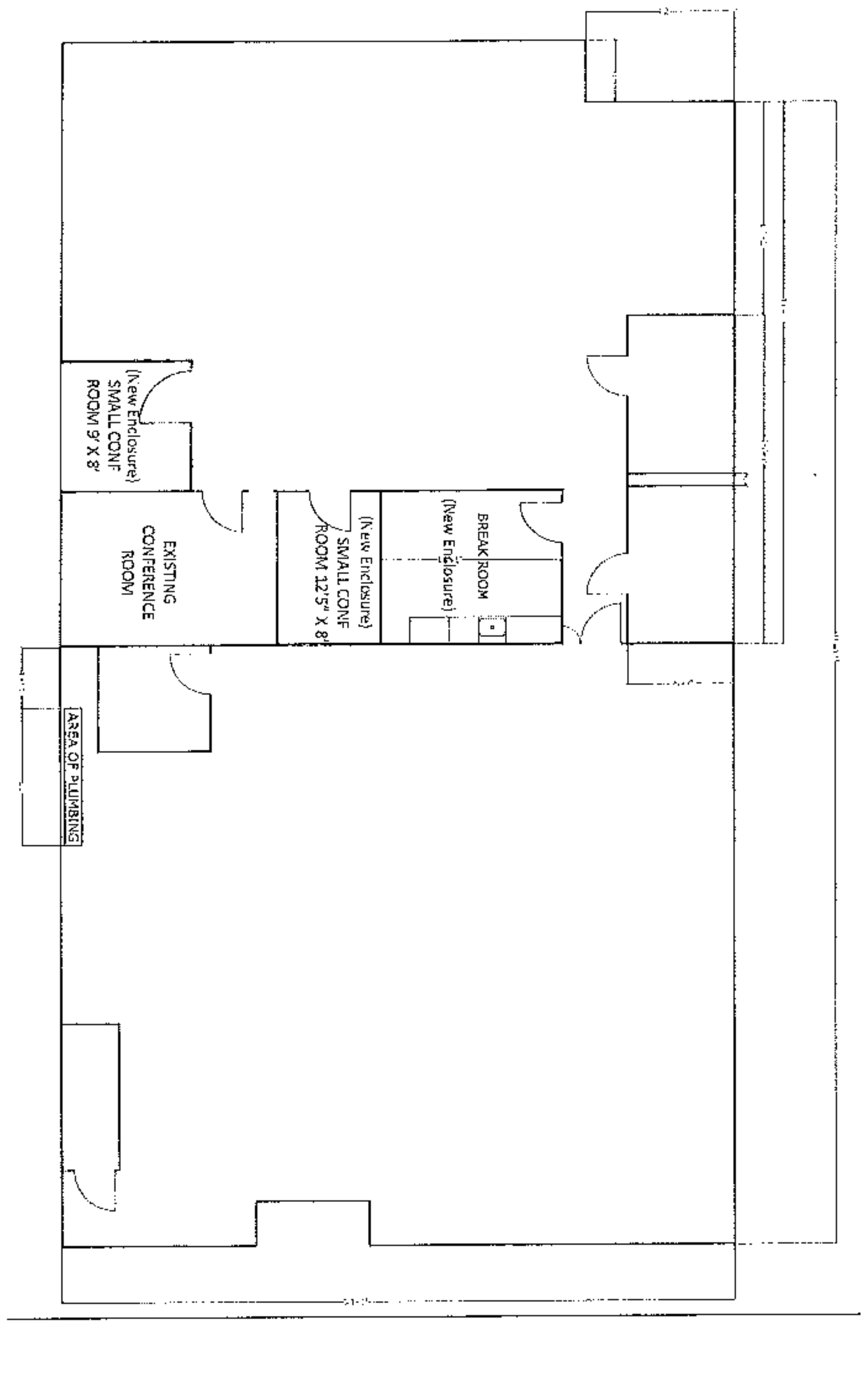

EXHIBIT F
TO MULTI-TENANT NET LEASE
SUPPLEMENTAL AGREEMENT AND COMMENCEMENT CERTIFICATE

THIS SUPPLEMENTAL AGREEMENT AND COMMENCEMENT CERTIFICATE ("Agreement") is executed this _____ day of __________________, 20__, by WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company ("Landlord"), TD INDUSTRIES, INC., a Texas corporation ("Tenant"), with respect to and forming a part of that certain MULTI-TENANT NET LEASE ("Lease") dated _________________________, 20____, for the premises that are a part of the building complex commonly known as Prairie Trail Business Park ("Premises").

WITNESSETH

WHEREAS, Section 3.3 of said Lease requires that a Supplemental Agreement and Commencement Certificate be entered into between the parties setting forth the commencement and expiration dates of said Lease; and

WHEREAS, the parties desire to reaffirm and/or amend and certify to certain provisions of the Lease, and

WHEREAS, the parties desire that the matters set forth herein be conclusive and binding on the parties.

NOW THEREFORE, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties agree as follows:

1. The Commencement Date is agreed to be ________________________.

2. The Expiration Date is agreed to be ________________________________, unless otherwise extended pursuant to **Exhibit C**, if such exhibit exists.

3. Tenant's address is agreed to be ______________________________________ ____.

4. Tenant's rentable area is agreed to be ________________ square feet.

5. By execution of this Agreement, Tenant acknowledges and agrees that all improvements or other work required of Landlord, including the completion of Landlord's Work under the Work Letter and this Lease, has been satisfactorily performed, and Tenant has accepted the Premises in its present condition in full compliance with the terms and conditions of the Lease.

6. By execution of this Agreement, Tenant acknowledges and agrees that all sums due to Tenant from Landlord for the Allowance, if any, under the Work Letter and this Lease have been paid.

7. Except as expressly amended by this Agreement, all terms and conditions of the Lease shall continue in full force and effect, and are hereby republished and reaffirmed in their entirety.

8. This Agreement shall be binding upon and be relied upon by the parties and their respective legal representatives, successors, and assigns.

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To evidence the parties' agreement to this Agreement, they have executed and delivered it as of the day and year written in the preamble.

LANDLORD
TENANT

WOODSPEAR PRAIRIE TRAIL LLC, a Colorado limited liability company	TD INDUSTRIES, INC., a Texas corporation
By: **EXHIBIT ONLY - DO NOT SIGN** John A. Woodward, Manager	By: **EXHIBIT ONLY - DO NOT SIGN** Name: Tara Garcia Title: Vice President - Multifamily

STATE OF COLORADO)
) ss.
CITY AND COUNTY OF DENVER)

The foregoing instrument was acknowledged before me this _______ day of____________________, 20___, by John A. Woodward, Manager of Woodspear Prairie Trail, LLC, a Colorado limited liability company, Landlord.

WITNESS my hand and official seal.

My commission expires ________________________________

(S E A L) ________________________________
Notary Public

STATE OF ____________________)
) ss.
COUNTY OF ____________________)

The foregoing instrument was acknowledged before me this ______________ day of ________________, 20____, by ____ as ________________________________ of ________________________________ ________________________________, Tenant.

WITNESS my hand and official seal.

My commission expires __________________________

(S E A L) ________________________________
Notary Public

EXHIBIT G
TO MULTI-TENANT NET LEASE
UCC-1 FINANCING STATEMENT

EXHIBIT H
TO MULTI-TENANT NET LEASE
TENANT'S ESTOPPEL CERTIFICATE

The undersigned, TD INDUSTRIES, INC., a Texas corporation, is the tenant ("Tenant") under a Multi-Tenant Net Lease ("Lease") dated ____________________, 20__, between the Tenant and WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company, as Landlord ("Landlord") of certain real property commonly known as 8591 – 8599 Prairie Trail Drive, City of Englewood (*postal address*), County of Douglas, and State of Colorado, as described in attached Exhibit "A" (the "Property"). Tenant hereby represents and certifies as follows:

1. The Lease, a true correct complete copy of which is attached hereto as Exhibit "B", is in full force and effect and has not been modified, supplemented, cancelled or amended in any respect, except as provided in Exhibit "B".

2. There are no offsets, defenses or counterclaims with respect to the payment of rent reserved under said Lease or in the performance of the other terms, covenants and conditions of the Lease on the part of Tenant to be performed except ______________________________ ______________________________.

3. No default of the Lease has been declared by Landlord or Tenant except ______ ______________________________.

4. The term of the Lease commenced on________________, and expires on _____ ________________ (the "Term"), and Tenant is currently obligated to pay base rent during the Term in monthly installments each in an amount of $________________________, which rent obligation is continuing and is not past due or delinquent in any respect. No installment of rent has been or will be prepaid more than one (1) month in advance.

5. Tenant occupies and has accepted the Premises from Landlord pursuant to the terms of the Lease, and the Allowance, if any, has been paid by Landlord to Tenant pursuant to the Terms of the Lease.

6. All information, notices or requests provided for or permitted to be given or made pursuant to this certificate shall be deemed to have been properly made or given by depositing the same in the United States Mail, postage prepaid and registered or certified return receipt requested and addressed to the addresses set forth below, or to such other addresses as may from time to time be specified in writing by Tenant or Purchaser to the other:

If to Tenant:	______________________________ ______________________________ ______________________________
If to Landlord:	Woodspear Prairie Trail, LLC 5050 South Syracuse Street, Suite 900 Denver, Colorado 80237 Attention: John A. Woodward & Zakary A. Kessler
With a copy to:	Woodspear Properties Attn: Legal Department 810 Los Vallecitos Boulevard, Suite 214 San Marcos, California 92069

All requests or notices shall be effective upon being deposited in the United States Mail; however, the time period in which any response to any notice or request must be made shall commence from the date of receipt of the request or notice by the addressee.

7. This Certificate and the representations made herein shall be governed by the laws of the State of Colorado without regard to its laws regarding conflicts of laws, and are binding upon and inure to the benefit of ______________________ and its respective successors and assigns and to no other persons or entities.

[Rest of Page Intentionally Left Blank; Signatures Follow on the Next Page]

IN WITNESS WHEREOF, this Tenant's Estoppel Certificate has been duly executed and delivered by the authorized officers of the undersigned as of_________________________ ______, 20__.

TENANT
TD INDUSTRIES, INC., a Texas corporation

By: **EXHIBIT ONLY - DO NOT SIGN**
Name: Tara Garcia
Title: Vice President - Multifamily

TG

ACKNOWLEDGED BY LANDLORD:
LANDLORD

WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company

By: **EXHIBIT ONLY - DO NOT SIGN**
John A. Woodward, Manager

EXHIBIT I
TO MULTI-TENANT NET LEASE
SIGN CRITERIA

These Sign Criteria ("Sign Criteria") have been established for the purpose of assuring a quality business park and for the mutual benefit of all tenants. Conformance with the Sign Criteria will be strictly enforced, and any installed nonconforming or unapproved signs must be brought in conformance at the expense of Tenant. ANY SIGN THAT DOES NOT CONFORM TO THESE REGULATIONS MAY BE REMOVED AT LANDLORD'S SOLE DISCRETION AND REPLACED WITH A CONFORMING SIGN, WHICH COSTS OF REMOVAL AND REPLACEMENT SHALL BE AT TENANTS SOLE EXPENSE.

It will be the sole responsibility of Tenant to conform to the terms of the Sign Criteria as follows:

A. General Requirements:

1. Tenant shall submit to Landlord for its approval all copy and/or logo prior to installation of Tenant sign.

2. Upon Lease Termination, Tenant shall remove its sign and return the premises to their original condition.

3. No electrical or audible signs will be allowed, except subtle backlit signage as may be allowed by the local municipality.

4. Except as provided herein, no banners, pennants, placards, freestanding signs, or signs affixed to automobiles or trailers are allowed on the building, in the landscaped areas, or on streets or parking area. The restriction pertaining to automobiles or trailers does not apply to magnetic or painted identification signs placed on company or private vehicles for use in the normal course of business.

5. All signs will be reviewed for conformance with the Sign Criteria and overall aesthetics and design quality. Approval or disapproval of sign submittals based on aesthetics shall remain subject to the consent of Landlord, which shall not be unreasonably withheld, conditioned, or delayed.

6. Each Tenant shall submit or cause to be submitted to Landlord for approval before fabrication at least four (4) copies of detailed drawings indicating location, size, layout, design and color of the proposed signs, including all lettering and/or graphics.

7. All permits for signs and their installation shall be obtained by Tenant or their representative at Tenant's cost and expense and Tenant shall ensure that all signs comply with all appropriate government requirements. Nothing in the Sign Criteria shall imply a waiver of requirements by the local authorities. If Tenant's sign violates government requirements applicable to the Building Complex, Tenant's sign is subject to removal by Landlord pursuant to the Sign Criteria at Tenant's sole expense.

8. Tenant shall be responsible for the fulfillment of all requirements and specifications.

9. All signs shall be constructed and installed at Tenant's expense.

10. Tenant must submit Tenant's proposed sign to any applicable owner's association or any other group with design guidelines applicable to the Building Complex. Tenant must secure the approval of its sign under any applicable design guidelines prior to installing its sign pursuant to the Sign Criteria. If Tenant's sign violates the design guidelines applicable to the Building Complex, Tenant's sign is subject to removal by Landlord pursuant to the Sign Criteria at Tenant's sole expense.

[Rest of Page Intentionally Left Blank; Signatures Follow on the Next Page]

To evidence the parties' agreement to this Sign Criteria, they have executed and delivered it as of the date of the Lease.

LANDLORD

WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company

By:______________________________
John A. Woodward, Manager

TENANT

TD INDUSTRIES, INC., a Texas corporation

DocuSigned by:
By: Tara Garcia
C5377AB14A08479...

Name: Tara Garcia

Title: Vice President - Multifamily

EXHIBIT J
TO MULTI-TENANT NET LEASE

[INTENTIONALLY OMITTED.]